

Government of Bihar
Labour Resource and Migrant Workdr's Welfare Department
Notification

In exercise of the powers conferred under sub-section (1) of section 154 and 156 of the Code on Social Security, 2020 (Act no. 36 of 2020) the Governor of Bihar makes the following Rules in superssion of these Rules.-

1. Bihar Maternity Benefit Rules, 1964.
2. Bihar Payment of Gratuity Rules, 1972.
3. Bihar Unorganized Workers Social Security Rules, 2015

Chapter- I
PRELIMINARY

1. Short title, extent and commencement-

- (1) These rules may be called The Social Security (Bihar) Rules, 2026
- (2) They shall extend to whole of the State of Bihar.
- (3) They shall come into force from the date of its publication in official gazette

2. Definitions.- (1) In these rules, unless the subject or context otherwise requires, —

(a) **“Agency”** means any corporation, body or institution, established under an Act of Parliament/ State legislature or Central Public Sector Undertaking/State Public Sector Undertakings or Special Purpose Vehicle as notified by the Central Government/State Government.

(b) **“Appeal”** means an appeal preferred under clause (b) of sub-section (7) of section 37 or sub section (8) of section 56 or sub-section (3) of section 72 or sub-section (1) of section 99 and sub-section (1) of section 105, as the case may be;

(c) **"Appellate authority"** means the State Government or the authority specified by the State Government under clause (b) of sub-section (7) of section 37 or sub section (8) of section 56 or sub-section (3) of section 72 or sub-section (1) of section 99 and sub-section (1) of section 105, appointed by the State Government, as the case may be;

(d) **“Assessing Officer”** means a gazetted officer of a State Government appointed by such State Government for assessment of Cess under the Code;

(e) **“Authority”** means the State Government or the authority specified by the State Government for the purpose of sub-section (3) of section 72:

- (f) **“Career centre”** means that career centre as notified by the State Government;
- (g) **“cess collector”** means an officer appointed by the State Government for collection of cess under the Code;
- (h) **“chartered engineer”** means a person having an engineering degree and the corporate membership of Institute of Engineers India;
- (i) **“Code”** means the Code on Social Security, 2020 (36 of 2020);
- (j) **“Competent authority”** means an authority appointed under section 91 of the Code by the State Government;
- (k) **“Electronically”** means any information or communication submitted by email or uploading on the designated portal or digital payment in any mode for the purpose of Code;
- (l) **“excluded vacancies”** means those vacancies which have been excluded from the purview of the section 139 as per the provisions of sub-sections (1) and (2) of section 140;
- (m) **“Form”** means a form appended to these rules;
- (n) **“fund”** means the Employees’ State Insurance Fund, the Employees’ Provident Fund, the Employees’ Pension Fund, the Employees’ Deposit-Linked Insurance Fund or the Social Security Fund, as the case may be;
- (o) **“Government Securities”** means Government Securities as defined in the Government Securities Act, 2006 (38 of 2016);
- (p) **“immovable property”** includes land, benefits to arise out of land, things attached to the earth, or permanently fastened to anything attached to the earth;
- (q) **“movable property”** means property of every description except immovable property;
- (r) **“Nodal officer”** means a person designated by Building and Other Construction Workers’ Welfare Board or the State Government to facilitate the registration, renewal and updation electronically or otherwise or any such other function of Building Workers working in the Private Sector, State Government, Central Government and Public Sector Undertakings of the Central and the State Governments or local authority. The Nodal officer shall also supervise and monitor functions of the Beneficiary Registering Officers designated by Appropriate Government;
- (s) **“Nomination”** means nomination made under section 55 of the code;
- (t) **“Schedule”** means the schedule of the Code;
- (u) **“Section”** means a section of the Code;
- (v) **“ShramSuvidha Portal”** means portal of Ministry of Labour and Employment with such name

(w) **"Specified"** means specified by an order of the Central Government or any State Government or any officer so authorised by such Government;

(x) **"Standard Benefit Rate"** means average daily wages obtained by dividing the total wages paid during the Contribution period by the number of days for which these wages were paid;

(y) **"Year"** shall mean the financial year, beginning from the first of April and ending with the thirty first of March of the year following.

(2) The words and expressions used in these rules which are not defined therein, but are defined in the Code or corresponding central rules, shall have their respective meaning as assigned to them in the Code or corresponding central rules.

Chapter- II
Social Security Organization
PART - I
Bihar Unorganized Workers Social Security Board

3. Manner of exercising the powers and performance of functions by State Unorganised Workers' Board under sub-section (9) and sub section (16), the manner of nomination of members of the Board, their term of office and other conditions of service, the procedure to be followed in the discharge of their functions by, and the manner of filling vacancies among the members of, the Board under sub-section (12), the time, place and rules of procedure relating to the transaction of business at its meetings under sub-section (14) of section 6-

(1) Constitution of the State Social Security Board for Unorganised Workers.-

(i) The Board constituted by notification under sub-section (9) of section 6 shall be called as 'Bihar Unorganised Workers Social Security Board' (*hereinafter referred to as the "Board" for the purpose of this Rule*)

(ii) Minister of the Labour Resources and Migrant workers welfare Department, Government of Bihar shall be Chairperson of the Board, ex officio;

(iii) Additional Chief Secretary or Principal Secretary or Secretary, Labour Resources and Migrant workers welfare Department shall be Vice-Chairperson of the Board, ex officio;

(iv) A member, other than an ex-officio member, shall hold office for a period not exceeding three years from the date of his nomination.

(v) A member shall be eligible for re-nomination: Provided that a member shall not hold the office for more than total of two terms.

(vi) State Government may seek nomination from amongst the representatives of associations of unorganised sector workers and employers' associations of unorganised sector, in the Bihar Unorganised Workers Social Security Board for unorganised workers, in the category of sub-clauses (i) and (ii) of clause (d) of sub-section (10) of section 6 in such a manner, as notified by the Government.

(vii) The State Government shall nominate five persons under sub-clause (iv) of clause (d) of sub-section (10) of section 6 from amongst persons of eminence in the field of labour welfare, management, finance, law and administration.

(viii) Persons nominated under clause (vi) and (vii) of sub-rule (1) of Rule 3, at least one member each from the Scheduled Caste/ the Scheduled Tribe, the Minorities and Women shall be represented.

(ix) The State Government shall seek nomination of two members representing the State Legislative Assembly under sub-clause (iii) of clause (d) of sub-section (10) of section 6.

(x) The State Government shall nominate ten Members under sub-clause (v) of clause (d) of sub-section (10) of section 6 representing Departments of State Government, concerned with the matters related to the welfare of the unorganised sector workers.

(xi) A member nominated under sub-clauses (i), (ii) and (iv) of clause (d) of sub-section (10) of the section 6, shall cease to be a member of the Board if he ceases to represent the category of interest from which he was so nominated:

(xii) A member nominated under sub-clause (iii) of clause (d) of sub-section (10) of the section 6 shall cease to be a member of the Board if he ceases to be a member of State Legislative Assembly by which he was so elected.

(xiii) No person shall be chosen as, or continue to be, a member of the Board, if such person attracts any provision(s) of section 8 of the Code.

(xiv) The Member Secretary of the Bihar Unorganised Workers Social Security Board shall be notified by the State Government. The Member Secretary shall not be below the rank of Joint Labour Commissioner.

(2) Reconstitution of the Board- (i) State Government shall initiate the process for reconstitution of the Bihar Unorganised Workers Social Security Board, prior to six months of expiry of the term of the Board.

(ii) If the new Board is not re-constituted after completion of the term of the Board, such arrangements may be made for discharging and function of the board as may be decided by the State Government for the period till the new Board is constituted, through a notification.

(iii) Consequent upon institution of such arrangement, all actions taken shall have the same effect as if it has been carried out by the Board itself.

(3) Resignation- (i) A member of the Board, not being an ex-officio member, may resign by a letter in writing addressed to the State Government.

(ii) The seat of such a member shall fall vacant from the date on which his resignation is accepted or on the expiry of thirty days from the date of receipt of intimation of resignation, whichever is earlier.

(iii) The power to accept the resignation of a member shall vest with the State Government.

(4) Change of Address- If a member changes his address, he shall notify his new address to the Member Secretary of the Board who shall thereupon enter his new address in the official records:

Provided that if a member fails to notify his new address, the address in the official records shall for all purposes be deemed to be the member's correct address.

(5) Manner of filling vacancies.- When a vacancy occurs or is likely to occur in the membership of the Board, Member Secretary of the Board shall submit a report to the State Government and on receipt of such report, the State Government may, by notification, nominate a person to fill the vacancy in the manner prescribed under sub-rules (1) of rule 3 above, and the person so nominated shall hold office for the remainder of the term of office of the member in whose place he is nominated.

(6) Procedure for removal of a Member- (i) During the pendency of the proceeding, if any, under clauses (b) and (c) of sub-section (2) of section 8, for removal of a member of the Bihar Unorganised Workers Social Security Board, such member shall abstain from the meeting(s) of the Board.

(ii) The decision of the State Government, on the debarment, dis-qualification and removal of any member under **section 8 of the Code**, shall be final.

(7) Meetings. –

(a) The Bihar Unorganised Workers Social Security Board shall, subject to the sub-rule (2), meet at such place and time as may be decided by the Chairperson.

(b) The Bihar Unorganised Workers Social Security Board shall meet at least once in a quarter.

(8) Notice of meeting and list of business. –

(a) A notice of not less than fifteen days from the date of issue, containing the date, time and place of every ordinary meeting of Bihar Unorganised Workers Social Security Board together with a list of business proposed to be transacted approved by the Chairperson shall be sent to every member of Bihar Unorganised Workers Social Security Board through e-mail or registered post or otherwise. A brief note on each item of the agenda shall be sent along with the agenda as soon as possible thereafter.

(b) In case when the Chairperson calls an emergency meeting of the Bihar Unorganised Workers Social Security Board for considering any matter which in his opinion is urgent, a notice giving such reasonable time as he may consider necessary shall be deemed sufficient and shall be sent to every member of Bihar Unorganised Workers Social Security Board through e-mail or registered post or otherwise.

(c) The Chairperson of the Bihar Unorganised Workers Social Security shall, within fifteen days of receipt of a requisition in writing from not less than one-half of the members of the Board, call for a special meeting thereof. A requisition so made shall specify the object of the meeting proposed to be called. In case of a special meeting, notice of only three days may be given to each member.

(d) No business other than for which the meeting of Bihar Unorganised Workers Social Security Board has been convened shall be considered at the meeting except with the permission of the Chairperson of the meeting.

(9) Chairperson to preside at meetings. – The Chairperson or in his absence the Vice-Chairperson of Bihar Unorganised Workers Social Security Board shall preside the meeting. In

event of absence of both the Chairperson and the Vice-Chairperson, the meeting shall be presided over by such Member as may be nominated by the Chairperson.

(10) Quorum. – No business shall be transacted at any meeting unless at least one-third of the members and at least one representative member each of both the employers and an employee are present:

Provided that, if at any meeting less than one-third of the members are present, the Chairperson may adjourn the meeting to a date not later than fifteen days from the date of the original meeting and it shall thereupon be lawful to dispose of the business at such adjourned meeting irrespective of the number of members present:

Provided further that the date, time and place of such adjourned meeting shall be intimated to all the members electronically or otherwise.

(11) Nomination of a substitute during the absence of a Member –

a) If a member is unable to attend any meeting of the Bihar Unorganised Workers Social Security Board he may, by a written instrument, signed by him, addressed to the Chairperson of the concerned body and explaining the reasons for his inability to attend the meeting, appoint any representative of the organisation, which he represents on the Bihar Unorganised Workers Social Security Board as his substitute for attending that meeting of the State Board in his place:

Provided that no such appointment shall be valid unless—

- i. such appointment has been approved by the Chairperson of the Bihar Unorganised Workers Social Security Board; and
 - ii. the instrument making such appointment has been received by the Chairperson of the Bihar Unorganised Workers Social Security Board before the date fixed for the meeting.
- b) A substitute validly appointed under clause (a) shall have all the rights and powers of a member, as the case may be, in relation to the meeting of Bihar Unorganised Workers Social Security Board, in respect of which he is appointed and shall receive allowances, and be under obligations as if he were a member appointed under the Code.
- c) A member appointing a substitute for attending any meeting of the Bihar Unorganised Workers Social Security Board shall, notwithstanding anything contained in this sub-rule, continue to be liable for the misappropriation or misapplication of the Fund by the substitute and shall also be liable for any act of misfeasance or non-feasance committed in relation to the Fund by the substitute appointed by him.

(12) Disposal of business. – Every question considered at a meeting of the State Board or any Committee thereof shall be decided by a majority of the votes of the members of the Board present and voting. In the event of an equality of votes the Chairperson shall exercise a casting vote:

Provided that the Chairperson may in anticipation of an emergent situation when meeting is not possible, direct that any question shall be decided by the circulation of necessary papers to members of the State Board or any Committee thereof and by securing their opinions in writing. Any such question shall be decided in accordance with the opinion of the majority

of members received within the time-limit allowed and if the opinions are equally divided, the opinion of the Chairperson shall prevail:

Provided further that any member of the State Board or any Committee thereof may request that the question referred to members of the concerned body, as the case may be, for written opinion be considered at a meeting of the State Board or any Committee thereof and thereupon the Chairperson may, and if the request is made by not less than three or members of the Board, shall direct that it be so considered.

(13) Minutes of meetings. –

(a) The minutes of each meeting showing *inter-alia* the names of the member present there, shall be forwarded to each member of the Bihar Unorganised Workers Social Security Board as soon as possible and in any case not later than four weeks after the meeting.

(b) The minutes of the meeting shall be confirmed with such modification considered necessary at the next meeting.

(c) The minutes of a meeting of the Bihar Unorganised Workers Social Security Board shall be kept in separate Books (hereinafter referred to as minute-books) and shall be signed by the Chairperson of the meeting at which the proceedings are confirmed.

(d) A copy of the minutes so confirmed shall be forwarded to the State Government within fifteen days from the date of such confirmation.

(e) The minute-books shall be kept open at the principal office of the Bihar Unorganised Workers Social Security Board during office hours on working days for inspection free of charge by any of the respective member.

(14) Fees and allowances. –

(a) Every non-official member of the Bihar Unorganised Workers Social Security Board shall be allowed travelling and daily allowance for attending its meetings at the rates admissible to officers of the State Government holding a post of Group 'A' Gazetted officer.

(b) Where such member, who is a Member of State Legislature shall be paid travelling allowance and daily allowance in accordance with the provisions of the respective provision of the law pertaining to the members of the concerned State Legislature, as the case may be:

Provided that when a Minister is appointed as Chairperson of the Bihar Unorganised Workers Social Security Board and attends a meeting, his travelling and daily allowance shall be governed by the rules applicable to him for journeys performed on official duties and shall be paid by the authority paying his salary.

(c) No daily or travelling allowance in respect of any day of journey, as the case may be, shall be claimed by a member of the Bihar Unorganised Workers Social Security Board if he has drawn or will draw allowance for the same from his employer or as a member of the Committee or any Legislature or of any Committee or Conference constituted or convened by Government and no travelling allowance shall be claimed if he uses a means of transport provided at the expense of Government or his employer.

(d) For attending a meeting of the Bihar Unorganised Workers Social Security Board a member of the State Government shall draw his travelling allowance from his

department on a scale admissible to him under the State Government Rules and the amounts so drawn shall, on a demand being made therefore by the State Government, be reimbursed by the State Government.

(e) Payments shall not be made to a non-official member earlier than the last date up to which the allowance is claimed. The travelling allowance for both the onward and return journeys will be included in the travelling allowance bill and the payment made thereof treated as final, irrespective of the date of completion of the journey.

PART- II

Bihar Building and Others Construction Workers Welfare Board

4. Terms and conditions of appointment and the salaries and other allowances payable to the chairperson and the other members of the Building Workers' Welfare Board and the manner of filling of casual vacancies of such members, under sub-section (4), the terms and conditions of appointment and the salary and allowances payable to the Secretary and the other officers and employees of the said Board under clause (c) of sub-section (5) of section 7;

(1) Constitution of the Bihar Building and Others Construction Workers Welfare Board
- The Board constituted by notification under sub-section (1) of section 7 shall be called as 'Bihar Building and Others Construction Workers Welfare Board' (*hereinafter referred to as the "Board" for the purpose of this Rule*)

(2) Composition of Board- (i) The chairperson of the Bihar Building and Others Construction Workers Welfare Board shall be Secretary/ Principal Secretary/ Additional Chief Secretary heading the Labour Resource and Migrant Workers Welfare Department. The Labour Commissioner, Bihar shall be the Vice-Chairperson of the Bihar Building and Others Construction Workers Welfare Board.

(ii) State Government shall nominate fifteen members in Bihar Building and Other Construction Workers' Welfare Board. There shall be at least one-woman member in the Board.

A. The representatives of departments of State Government shall be Officer(s) not below the rank of Joint Secretary and consist of –

- a. Finance Department,
- b. Social Welfare Department and
- c. Education Department.
- d. One member of Law Department.
- e. One representative nominated by Ministry of Labour & Employment, Government of India

B. There shall be five representatives of building and other construction workers.

C. There shall be five representatives of employers of building building and other construction workers, one from each of the following; -

- a. Urban Development and Housing Department;
- b. Building Construction Department;
- c. Road Construction Department;
- d. Builders Association;
- e. Bihar Industries Association .

(2) Term and Reconstitution of Board- (i) The terms of Bihar Building and Others Construction Workers Welfare Board shall be three years from the date of its constitution.
(ii) State Government shall initiate the process for reconstitution of the Bihar Building and others Construction Workers Welfare Board, prior to six months of expiry of the term of the Board.

Provided that the existing Board shall work till the reconstitution of the Board under this Code.

(iii) If the new Board is not reconstituted after completion of the term of the Board, such arrangements may be made for discharging the functions of the board as may be decided by the State Government for the period till the new Board is constituted, through a notification.

(iv) Consequent upon institution of such arrangement, all actions taken shall have the same effect as if it has been carried out by the Board itself.

(v) A member, other than an ex-officio member, shall hold office for a period not exceeding three years from the date of his nomination.

(vi) A member shall be eligible for re-nomination: Provided that a member shall not hold the office for more than total of two terms.

(vii) The non-official members shall be removed by State Government from the Board if they cease to represent the interest for which he was nominated or if such person attracts any provision(s) of section 8 of the Code.

(3) Manner of filling of vacancies:-When a Vacancy occurs for any reason or likely to occur in the membership of the Board, the Secretary of the board shall submit a report to the State Government who shall take steps to fill the vacancy from amongst the category of person, to which the person vacating membership belongs and the person so nominated shall hold office for the remainder of the term of the office of the member whose place he is appointed.

(4) Meeting- (i) The Bihar Building and others Construction Workers Welfare Board shall meet at such places and at such times as may be decided by the Chairperson.

(ii) The Board shall meet **at least once in a quarter.**

(iii) In case of any matter of urgency special meetings may be called by the Chairperson after informing the members in advance about the subject-matter of discussion and the reasons of urgency .

(iv) In case of any matter of urgency meeting by circulation or other mode may be held.

(v) The Chairperson shall preside over every meeting of the Board in which he is present and in his absence, the meeting of the Board shall be chaired by any member nominated by chairperson in this behalf .

(5) Quorum- **No business shall be transacted at any meeting unless at least one-third of the members and at least one representative member each of both the employers and an employee are present;**

Provided that, if at any meeting less than one-third of the members are present, the Chairperson may adjourn the meeting to a date not later than fifteen days from the date of the original meeting and it shall thereupon be lawful to dispose of the business at such adjourned meeting irrespective of the number of members present;

Provided further that the date, time and place of such adjourned meeting shall be intimated to all the members electronically or otherwise.

(iii) The Chairperson may debar any member, other than ex-officio members, from taking part in the Meeting of the Board if-

(a) he absents himself from three consecutive meetings of the Board without written information to and consent of the Chairperson, or

(b) in the view of the State Government, such member has ceased to represent the interest which he purports to represent on the Board as per clause (vii) of sub-rule (2) of Rule 4.

(6) Disposal of business. – (i) Every question considered at a meeting of the Bihar Building and others Construction workers Welfare Board shall be decided by a majority of the votes of the members of the Board present and voting. In the event of an equality of votes the Chairperson shall exercise an casting vote:

(ii) The Chairperson may, if he thinks fit, direct that any question shall be decided by the circulation of necessary papers to members of the Board and by securing their opinions in writing. Any such question shall be decided in accordance with the opinion of the majority of members received within the time-limit allowed and if the opinions are equally divided, the opinion of the Chairperson shall prevail:

Provided that any member of the Board may request that the question referred to members of the concerned body, as the case may be, for written opinion be considered at a meeting of the Board and thereupon the Chairperson may, if the request is made by not less than three members of the concerned body, direct the procedure to be adopted.

(7) Salary and allowances to Chairperson and non-official members: - Non official members shall be entitled for travelling allowance and daily allowance at the rate admissible to the group “A” officers of State Government.

(8) Conditions of appointment, salary and allowances of Secretary and other officers and staff of the Board- (i) Board with the prior approval of State Government shall appoint an officer of Bihar Labour Service of the Labour Resource and Migrant Workers Welfare Department notified by the State Government not below the rank of Joint Labour Commissioner.

(ii) Labour Resource and Migrant Workers Welfare Department shall appoint officer(s) and other staff(s) for disposal of functions of the Board.

(iii) Secretary of the Board, other officer(s) and staff(s) shall be appointed in the manner determined by State Government by notification and they shall be paid salary and allowances as fixed by the State Government.

(9) Social security schemes and welfare measures under sub-section (6) of Section 7-(i) Board with the prior approval of State Government shall notify social security scheme and welfare measures prescribed in sub-section (6) of Section 7.

(ii) Board shall formulate social security schemes and welfare measures in which eligibility limit, detail of various benefits, application form, procedure, determination of competent

authority for sanction of benefit and manner of payment and other incidental matters thereto shall be clearly mentioned **as per provisions of the Code**. These shall be done by Stae Government through publishing them in official gazette

Chapter III

Employees Insurance Court

5. Manner and time within which second appeal may be filed to the Employees' Insurance Court by the Insured Person or the Corporation under clause (b) of sub-section (7) of section 37.-(1)

The Insured Person or the Corporation may appeal to the Employees' Insurance Court by presenting an application within ninety days of the date of communication of the decision of the Medical Board or of the Medical Appeal Tribunal to the Insured Person or the Corporation, as the case may be: Provided that the Employees' Insurance Court may entertain an application after the period of ninety days, if it is satisfied that the appellant had sufficient reasons for not presenting the application within the said period.

(2) The applications to the Employees' Insurance Court, shall be in Form I

6. Procedure to be followed by the Employees' Insurance Court under sub-section (2) and the rules under sub-section (3) of section 50 and the manner of commencement of proceedings before the Employees' Insurance Court, fees and procedure thereof under sub-section (1) of section 51;

(1) For the purpose of Section 48, the State Government, by notification, shall constitute an Employees' Insurance Court for such local area as may be specified in notification.

(2) Procedure for application to the Employee Insurance Court- (i) An Application under Section 49 shall be presented in triplicate or electronically, as the case may be, in Form II.

(ii) Every application shall be verified in the same manner as a pleading in a Civil Court.

(iii) All the documents on which the application is based or has desired by applicant shall be appended to application with an accurate list thereof;

(iv) All application shall be entered in a register in **Form- III** to be maintained by the Court.

(3) Proceeding of Employees Insurance Court- (i) Every application to the Court shall be brought within 3 years on which the cause of action arose or as the case may be, the claim becomes due;

(ii) Where at any stage it appears to the Court that the application should be presented to another Court, or should be *entertain* by the another Court, the first mention Court shall send the application or file of the case to the Court empowered to deal with it and shall inform the applicant and the opposite party accordingly and the Court to which application for file is transferred shall continue the proceedings as if the previous proceedings or any part of it had been taken before it.

(iii) The Court shall follow the rules of code of civil procedure in respect of summoning of the parties, service of summon, procedure of hearing, framing of issues, statement and production

of evidence, method of recording evidence, cross examination of witness and other related matters.

(4). Fees and Costs.- (i) The fee payable on an application in respect of any matter referred to in Section 49 of the Code shall be Rs. 100/-

(ii) The fee and costs payable in respect of any other matters shall be such as prescribed by the relevant laws prescribed for the time being in force.

(iii) All fees and costs referred to in this rule shall be collected by means of Court fee stamps.

Chapter IV

Gratuity

7. Bank or other financial institution in which the gratuity shall be invested for the benefit of minor under the third proviso to sub-section (1) of section 53- (1) In the case of a nominee, or an heir, who is minor, the competent authority referred to in the third proviso to sub-section (1) of section 53 shall invest the gratuity amount deposited with him by the employer for the benefit of such minor in term deposit with the State Bank of India or any nationalised bank.

Explanation– For the purposes of this rule, "nationalised bank" means a corresponding new bank specified in the First Schedule to the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (5 of 1970) or a corresponding new bank specified in the First Schedule of the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1980 (40 of 1980).

(2). Time, form and manner of nomination by an employee under sub-section (1), the time to make fresh nomination under sub-section (4), the form and manner of modification of a nomination under sub-section (5) and the form for fresh nomination under sub-section (6) of section 55.- (1) A nomination shall be in **Form-IV** and submitted in duplicate by the employee either by personal service, after taking proper receipt or by registered post acknowledgement due or electronically to the employer,

(i) in the case of an employee who is already in employment for a year or more on the date of commencement of these rules but not submitted the nomination, ordinarily, within ninety days from such date; and

(ii) in the case of an employee who completes one year of service after the date of commencement of these rules, ordinarily within thirty days of the completion of one year of service:

Provided that nomination in **Form-IV** shall be accepted by the employer after the specified period, if filed and no nomination so accepted shall be invalid merely because it was filed after the specified period.

(2) Within thirty days of the receipt of nomination in **Form-IV** under sub-rule (1), the employer shall get the service particulars of the employee, as mentioned in the form of nomination, verified with reference to the records of the establishment and return to the employee, after obtaining a receipt thereof, the duplicate copy of the nomination in **Form-IV** duly attested

either by the employer or an officer authorised in this behalf by him, as a token of recording of the nomination by the employer and the other copy of the nomination shall be **retained**.

(3) An employee who has no family at the time of making a nomination shall, within ninety days of acquiring a family submit in the manner specified in sub-rule (1), a fresh nomination, as required under sub-section (4) of section 55, in **Form V** to the employer and thereafter the provisions of sub-rule (2) shall apply *mutatis mutandis* as if it was made under sub-rule (1).

(4) A notice of modification of a nomination, including cases where a nominee predeceases an employee, shall be submitted in duplicate in **Form-VI** to the employer in the manner specified in sub-rule (1), and thereafter the provisions of sub-rule (2) shall apply *mutatis mutandis as if it was made under sub-rule (1)*.

(5) A nomination or a fresh nomination or a notice of modification of nomination shall be, signed by the employee or, if illiterate, shall bear his thumb impression and shall be submitted by the employee electronically or by registered post acknowledgement due. **In case the employee is illiterate, the signatures of the witnesses will be recorded on the prescribed form and it will be mentioned that the thumb impression has been put by the employee in our presence.**

(6) A nomination, fresh nomination or notice of modification of nomination shall take effect from the date of receipt thereof by the employer.

8. Time within which and the form in which a written application shall be made under sub-section (1) and the form of application to the competent authority under clause (b) of sub-section (5) of section 56.

(1) Application for Gratuity: (i) An employee who is eligible for payment of gratuity under the Code, or any person authorized, inwriting, to act on his behalf, shall apply, ordinarily within thirty days from the date the gratuity became payable, in **Form-VII** to the employer:

Provided that where the date of superannuation or retirement of an employee is known, the employee may apply to the employer before sixty days of the date of superannuation or retirement:

Provided further that an employee on fixed term employment shall be eligible for gratuity, if he renders service under the contract for a period of at least one year and for subsequent period in excess of six months and above, but less than one year, shall be rounded off to one additional year.

(ii) A nominee of an employee who is eligible for payment of gratuity under the second proviso to sub-section (1) of section 53 shall apply, ordinarily within thirty days from the date of gratuity became payable to him, in **Form-VII** to the employer:

Provided further that an application in plain paper with relevant particulars shall also be accepted. The employer may obtain such other particulars as may be deemed necessary by him.

(iii) A legal heir of an employee who is eligible for payment of gratuity under the second proviso to sub-section (1) of section 53 shall apply, ordinarily within one year from the date of gratuity became payable to him, in **Form-VII** to the employer.

(iv) Where gratuity becomes payable under the Code before the commencement of these rules, the periods of limitation specified in clauses (a), (b) and (c) sub-rule (1) shall be deemed to be operative from the date of such commencement.

(v) An application for payment of gratuity filed after the expiry of the periods specified in this rule shall also be entertained by the employer, if the applicant adduces sufficient cause for the delay in preferring his claim, and no claim for gratuity under the Code shall be invalid merely because the claimant failed to present his application within the specified period. Any dispute in this regard shall be referred to the competent authority for his decision.

(vi) An application under this rule shall be presented to the employer either by electronically or personal service or by registered post acknowledgement due.

(vii) As soon as gratuity becomes payable, the employer shall, whether an application has been made or not, determine the amount of gratuity and give notice in writing to the person to whom the gratuity is payable and also to the controlling authority specifying the amount gratuity so determined.

(2) Notice for payment of gratuity :-(i) Within fifteen days of the receipt of an application under sub-rule (1) for payment of gratuity, the employer shall-

(a) if the claim is found admissible on verification, issue a notice in **Form-VIII** to the applicant employee, nominee or legal heir, as the case may be, specifying the amount of gratuity payable and fixing a date, not being later than the thirtieth day after the date of receipt of the application, for payment thereof, or

(b) if the claim for gratuity is not found admissible, issue a notice in **Form-VI** to the applicant employee, nominee or legal heir, as the case may be, specifying the reasons why the claim for gratuity is not considered admissible. In the case of denial of gratuity, a copy of the notice shall be endorsed to the competent authority.

(ii) In case payment of gratuity is due to be made in the employer's office, the date fixed for the purpose in the notice in **Form-VIII** under sub-clause (i) of clause (a) sub-rule (2) shall be re-fixed by the employer, if a written application in this behalf is made by the payee explaining why it is not possible for him to be present in person on the date specified.

(iii) If the claimant for gratuity is a nominee or a legal heir, the employer may ask for such witness or evidence as may be deemed relevant for establishing his identity or maintainability of his claim, as the case may be. In that case, the time limit specified for issuance of notices under clause (a) of sub-rule (2) shall be operative with effect from the date such witness or evidence, as the case may be, called for by the employer is furnished to the employer.

(iv) A notice in **Form-VIII** shall be served on the applicant either by personal service after taking receipt or by registered post with acknowledgement due or electronically.

(v) A notice under sub-section (2) of section 56 shall be in **Form-VIII**.

(3) Mode of payment of gratuity: The gratuity payable under the Code shall be paid through Demand Draft or by crediting in the bank account of the eligible employee, nominee or legal heir, as the case may be.

(4) Application to competent authority for direction under clause (b) of sub-section (5) of section 56:

(i) If an employer-

(a) refuses to accept a nomination under rule 7(2) or to entertain an application sought to be filed under sub rule (1) or

(b) issues a notice under clause (a) of sub-rule (2) either specifying an amount of gratuity which is considered by the applicant less than what is payable or rejecting eligibility to payment of gratuity, or

(c) having received an application under sub-rule (1) fails to issue notice as required under sub-rule (2) within the time specified therein, the claimant employee, nominee or legal heir, as the case may be, may, within one hundred eighty days of the occurrence of the cause for the application, apply in **Form-IX** to the competent authority for issuing a direction under sub-section (5) of section 56 with as many extra copies as are the opposite party:

Provided that the competent authority may accept any application under this sub-rule, on sufficient cause being shown by the applicant, after the expiry of the specified period.

(ii) Application under clause (a) sub-rule (4) and other documents relevant to such an application shall be presented in person to the competent authority or shall be sent by registered post acknowledgement due or electronically.

(5) Procedure for dealing with application for direction- (i) On receipt of an application under sub-rule (4) the competent authority shall, by issuing a notice in **Form-X**, by electronically or registered post acknowledgment due or in person call upon the applicant as well as the employer to appear before him on a specified date, time and place, either by himself or through his authorized representative together with all relevant documents and witnesses, if any.

(ii) Any person desiring to act on behalf of an employer or employee, nominee or legal heir, as the case may be, shall present to the competent authority a letter of authority from the employer or the person concerned, as the case may be, on whose behalf he seeks to act together with a written statement explaining his interest in the matter and praying for permission so to act. The

competent authority shall record thereon an order either according his approval or specifying, in the case of refusal to grant the permission prayed for, the reasons for the refusal.

(iii) A party appearing by an authorized representative shall be bound by the acts of the representative.

(iv) After completion of hearing on the date fixed under clause (i), or after such further evidence, examination of documents, witnesses, hearing and inquiry, as may be deemed necessary, the competent authority shall record his finding as to whether any amount is payable to the applicant under the Code. A copy of the finding shall be given to each of the parties.

(v) If the employer concerned fails to appear on the specified date of hearing after due service of notice without sufficient cause, the competent authority may proceed to hear and determine the application ex parte. If the applicant fails to appear on the specified date of hearing without sufficient cause, the competent authority may dismiss the application:

Provided that an order under clause (v) of sub-rule (5) may, on good cause being shown within thirty days of the said order, be reviewed and the application re-heard after giving not less than fourteen days' notice to the opposite party of the date fixed for rehearing of the application.

(6) Place and time of hearing.-The sittings of the competent authority shall be held at such times and at such places as he may fix and he shall inform the parties electronically or registered post acknowledgment due or in person

(7) Administration of oath.-The competent authority may authorize a clerk of his office to administer oaths for the purpose of making affidavits.

(8) Summoning and attendance of witnesses.-The competent authority may, at any stage of the proceedings before him, either upon or without an application by any of the parties involved in the proceedings before him, and on such terms as may appear to the competent authority just, issue summons to any person in **Form-X** either to give evidence or to produce documents or for both purposes on a specified date, time and place.

(9) Service of summons or notice. - (i) Subject to the provisions of clause (b) any notice, summons, process or order issued by the competent authority may be served either personally or by registered post acknowledgement due or electronically or in any other manner as prescribed under the Code of Civil Procedure, 1908 (5 of 1908).

(ii) Where there are numerous persons as parties to any proceeding before the competent authority and such persons are members of any trade union or association or are represented by an authorised person, the service of notice on the Secretary, or where there is no Secretary, on the principal officer of the trade union or association, or on the authorized person shall be deemed to be service on such persons.

(10) Maintenance of records of cases by the competent authority. - (i) The competent authority shall record the particulars of each case under section 56 and at the time of passing orders shall sign and date the particulars so recorded.

(ii) The competent authority shall, while passing orders in each case, also record the findings on the merits of the case and file it together with the memoranda of evidence with the order sheet.

(iii) Any record, other than a record of any order or direction, which is required by these rules to be signed by the competent authority, may be signed on behalf of and under the direction of the competent authority by any subordinate officer appointed in writing for this purpose by the competent authority.

(11) Direction for payment of gratuity: If a finding is recorded under sub-rule (d) of rule (5) that the applicant is entitled to payment of gratuity under the Code, the competent authority shall issue a notice to the employer concerned in **Form-XI** electronically or registered post acknowledgment due or in person specifying the amount payable and directing payment thereof to the applicant under intimation to the competent authority within thirty days from the date of the receipt of the notice by the employer. A copy of the notice shall be endorsed to the applicant employee, nominee or legal heir, as the case may be.

(12) Appeal. - (i) The Memorandum of appeal under sub-section (8) of section 56 of the Code shall be submitted to the Labour Commissioner-cum- appellate authority with a copy thereof to the opposite party and the competent authority either through delivery in person or under registered post acknowledgement due or electronically.

(ii) The Memorandum of appeal shall contain the facts of the case, the decision of the competent authority, the grounds of appeal and the relief sought.

(iii) There shall be appended to the Memorandum of appeal a certified copy of the finding of the competent authority and direction for payment of gratuity.

(iv) On receipt of the copy of Memorandum of appeal, the competent authority shall forward records of the case to the appellate authority.

(v) Within fourteen days of the receipt of the copy of the Memorandum of Appeal, the opposite party shall submit his comments on each paragraph of the memorandum with additional pleas, if any, to the appellate authority with a copy to the appellant.

(vi) The appellate authority shall record its decision after giving the parties to the appeal a reasonable opportunity of being heard. A copy of the decision shall be given to the parties to the appeal by electronically or registered post or in person and a copy thereof shall be sent to the competent authority returning his records of the case.

(vii) The competent authority shall, on receipt of the decision of the appellate authority, make necessary entry in the records of the case maintained by him.

(viii) On receipt of the decision of the appellate authority, the competent authority shall, if required under that decision, modify his direction for payment of gratuity and issue a notice to the employer concerned in **Form-XI** specifying the modified amount payable and directing payment thereof to the applicant, under intimation to the competent authority within fifteen days of the receipt of the notice by the employer. A copy of the notice be endorsed to the appellant employee, nominee or legal heir, as the case may be, and to the appellate authority.

(ix) The time limit for disposal of appeal shall not exceed 90 days from the date of filing of appeal. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the appeal.

(13) Application for recovery of gratuity. - Where an employer fails to pay the gratuity due under the Code in accordance with the notice by the competent authority under sub-rule (11) or sub-rule (12), as the case may be, the employee concerned, his nominee or legal heir, as the case may be, to whom the gratuity is payable may apply to the competent authority in duplicate in **Form XII** for recovery thereof under section 129 of the Code.

9. Manner of registration of an establishment by the employer under sub-section (3) and the manner of composition of the Board of Trustees of the approved gratuity fund and the manner in which the competent authority may recover the amount of the gratuity payable to an employee from the insurer under sub-section (4) of section 57-

(1) The State government shall notify the manner of registration of an establishment by the employer under sub-section (3) of Section 57 as according to the provision referred in sub section (1) and (2).

(2) The composition of the Board of Trustees of the approved gratuity fund shall be notified by State Government.

(3) All registration shall be done electronically in form XIII.

(4) Any amount directed to be paid under this section shall be recoverable as an arrear of land revenue.

10. Qualifications and experience of the officer appointed as the competent authority under sub-section (1) of section 58.- Under Section 58 sub-section (1) of the Code on Social Security, 2020 (36 of 2020), the Deputy Labour Commissioner having at least one year of experience as Assistant Labour Commissioner shall be the competent authority within his area of jurisdiction.

CHAPTER- V

MATERNITY BENEFIT ACT

11. Authority to whom an appeal may be preferred under sub-section (3) of section 72-

(1) Complaint under section 72.— (a) A complaint under sub-section (1) of section 72 shall be made in writing in Form-XIV as the case may be. (b) When a complaint referred to in section 72 is received by an Inspector-cum-Facilitator, he shall examine the relevant records maintained by the employer in this behalf, examine any person employed in the establishment and take down necessary statement for the purpose of the enquiry and if he is satisfied that the maternity benefit or the amount has been improperly withheld, he shall direct the employer to make the payment to the woman or to the person claiming the payment under section 63, as the case may be, immediately or within a specified period.

Provided that the time limit for disposal of complaint shall not exceed 90 days from the date of filing of complaint. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the complaint.

(2) Appeal under section 72— (a) An appeal against the decision of the Inspector-cum-Facilitator under sub-section (2) of section 72, shall lie to the **Competent Authority**. (b) The aggrieved person shall prefer an appeal in writing to the Competent Authority in Form-XV and file other supporting documents. (c) When an appeal is received, the Competent Authority shall call from the Inspector-cum-Facilitator before a fixed date, the record of the case. The Competent Authority shall, if necessary, also record the statements of the aggrieved person, and of the Inspector-cum-Facilitator and seek clarification if any is required. (d) Taking into account the documents, the evidence produced before him and the facts presented to him or ascertained by him, the Competent Authority shall give his decision within a period of 90 days from filing of the application before him. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the appeal.

(3) Under Section 72, sub-section (3) of the Code on Social Security, 2020 (36 of 2020), the Deputy Labour Commissioner shall be the competent authority within his area of jurisdiction.

CHAPTER- VI EMPLOYEE'S COMPENSATION

12. Amount to be deposited towards the expenditure of the funeral of the employee with the competent authority by the employer under sub-section (7) of section 76 - If the injury of employee results in death, the employer shall in addition to compensation to be deposited under the code with competent authority a sum of Fifteen thousands rupees or such amount as may be prescribed by the State Government through Gazette notification, for payment of the same to the eldest surviving dependents of the employee towards the expenditure of the funeral of such employee or where the employee did not have the dependent or was not living with his dependent at the time of his death to the person who actually incurred such expenditure;

Provided that if the Central Government by notification enhances the amount specified in sub-section (7) of section 76, the amount to be deposited under this rule shall be automatically enhanced.

13. Conditions when application for review is made without certificate of a medical practitioner under sub-section (1) of section 79- Application for review of half-monthly payment under sub-section (1) of Section 79, may be made without being accompanied by a medical certificate-

(a) by the employer, on the ground that since the right to compensation was determined, the employee's wages have increased;

(b) by the employee, on the ground that since the right to compensation was determined, his wages have diminished;

(c) by the employee, on the ground that the employer, having commenced to pay compensation, has ceased to pay the same, notwithstanding the fact that there has been no change in the employee's condition such as to warrant such cessation;

(d) either by the employer or by the employee, on the ground that the determination of the rate of compensation for the time being in force was obtained by fraud or undue influence or other improper means;

(e) either by the employer or by the employee on the ground that in the determination of compensation there is a mistake or error apparent on the face of the record.

14. Class of employers and the form of notice-book under sub-section (4) of section 82- Every employer to which the code applies shall maintain a notice book in accordance with sub-section (4) of section 82 in **Form- XVI**.

15. Interval for medical examination under the proviso to sub-section (1) of section 84 - A employee who is in receipt of a half monthly payment shall not be required to submit himself for medical examination elsewhere than at the place where he is residing for the time being for more than twice in the first month following the accident or more than once in any subsequent month.

16. Form of statement to be submitted by the employer under sub-section (1) of section 88- The Statement for fatal accident required by sub section (1) of Section 88 shall, be in **Form XVII**.

17. Manner of Recording Memorandum for the purpose of sub-section (1) of Section 89 -
(1) Form of Memorandum- Memoranda of agreement sent to the Competent authority under sub-section (1) of Section 89 shall unless the Competent authority otherwise directs, be in duplicate, and shall be in as close conformity as the circumstances of the case admit with, **Form XVIII**, or **Form XVIII-A**, or **Form XVIII-B** as the case may be.

(2) On receiving a memorandum of agreement, the Competent authority shall, for taking decision to record memorandum or refusing to record, shall issue notice to parties to agreement in Form XIX fixing date and place of hearing that in default of objections he proposes to record the memorandum on the date so fixed: The notice under this sub-rule may be sent personally or through registered post/speed post or electronically.

Provided that the notice may be communicated orally to any parties who are present at the time when notice in writing would otherwise issue.

(3) On the date so fixed, the Competent authority, after hearing the parties to agreement shall take decision to record or refuse to record the memorandum.

Provided that the issue of a notice under rule (1) shall not be deemed to prevent the competent authority from refusing to record the memorandum on the date so fixed even if no objection be made by any party concerned.

(4) If on such date the Competent authority decides that the memorandum ought not to be recorded, he shall inform the parties present of his decision and of the reasons thereof and if any party desiring the memorandum to be recorded is not present, he shall send information to that party.

(5) Registration of memorandum accepted for record. -- In recording a memorandum of agreement, the Competent authority shall cause the same to be entered in a register in **Form XX** and shall cause an endorsement to be entered under his signature on a copy of a memorandum to be retained by him in the following terms, namely-

“The memorandum of agreement bearing Serial No. _____ of 20_____ in the register has been recorded this _____ day _____ of.

(Signature)

Competent authority”

18. Qualifications and Experience for Competent authority under sub-section (1) of Section 91- Those Deputy Labour Commissioner having one year experience as assistant Labour Commissioner shall be appointed as competent authority shall be appointed by the State Government by notification.

19. Manner in which matters may be dealt with by or before a competent authority under sub-section (1) of section 92- (1) On receipt of the application, the Competent Authority shall verify the jurisdiction as per the parameters specified in clause (a), (b) and (c) of sub-section (1) of section 92.

(2) If it appears to the Competent authority on receiving application that it should be presented to another Competent authority, he shall return it to the applicant after endorsing upon it the date of the presentation and return, the reason for returning it and designation of the Competent authority to whom it should be presented.

(3) If at any stage of case it appears to competent authority the application should be entertained by another competent authority, he shall send file of the case to that authority and who has the jurisdiction, and inform to applicant and other parties as per the procedure defined in sub-section (3) of Section 93 of the Code.

(4) The competent authority to whom the case has been transferred, shall continue to proceed as if the previous proceedings were done before him, provided he is satisfied that it will not cause prejudice to the concerned parties.

20. Time-limit for disposal of application and cost incidental to the proceedings under sub-section (4) of section 93- (1) The appropriate authority shall dispose the application within six months from the date of application received.

(2) Incidental Costs.- (i) Any party to the dispute who desires to get certified copies of decision, decree, or other document may get decision, decree, or other document on payment of cost at the following rate :-

(a) The cost for the copies of any document of record or statement or order or decree may be notified by the State Government from time to time.

(b) The cost of service or summons or notices or expenses of witnesses or the cost payable in respect of any matter not referred before shall be such amount as may be specified in each case by the Court and such amount or any other sum of money payable under this rule shall be paid in such manner and within such time as may be notified by State Government.

(c) The court may, whenever it finds either on applications of applicant or otherwise that the applicant is unable to pay the cost it may exempt the applicant from the payment of cost.

(ii) Any person who is not a party to dispute, may get the certified copy of decision, decree or other documents except the confidential documents, on payment of the fees prescribed in above mentioned clauses.

21. Manner of authentication of memorandum under section 97- (1) **Evidence:-**(i) After framing of issues, parties may submit their evidence on affidavit, on which opposite party shall have right to cross examination.

(ii) On application by any party to the proceedings and on deposit of fees and expenses fixed by the Competent authority, the competent authority may summon any witness whose evidence, he thinks necessary for just decision of the case.

(iii) The evidence of all witnesses shall be recorded in the presence of competent authority and shall be authenticated by his signature and seal.

(2) Provisions of Bhartiya Nagrik Suraksha Sanhita, 2023 to apply - Save as otherwise expressly provided in the Act or these rules the **Provisions of Bhartiya Nagrik Suraksha Sanhita , 2023** shall apply to proceedings before Competent authorities, in so far as they may be applicable thereto:

Provided that: -

(a) for the purpose of facilitating the application of the said provisions the Competent authority may construct them with such alternations not affecting the substance as may be necessary or proper to adapt them to the matter before him;

(b) the competent authority may, for sufficient reasons, proceed otherwise than in accordance with the said provision, if he is satisfied that the interests of the parties will not thereby be prejudiced.

CHAPTER- VII

Welfare Cess

22. Time limit to pay the amount of cess under section 101- (1) The cess levied under the sub-section (1) of section 100 shall be paid by an employer, within thirty days of the completion of the construction project or within thirty days of the date on which assessment of cess payable is finished, whichever is earlier, to the cess collector or Bihar Building and other Construction Board.

(2) Notwithstanding the provisions of sub-rule (1), where the duration of the project or construction work exceeds one year, cess shall be paid within thirty days of completion of one year from the date of commencement of work and every year thereafter at the notified rates on the cost of construction incurred during the relevant period shall be deposited to the cess collector or Bihar Building and other Construction Board.

23. Fees for appeal under sub-section (2) of section 105- A non-refundable fee equivalent to one-half percent of the amount in dispute or penalty or both, as the case may be, but not exceeding twenty-five thousand rupees, under such appeal.

CHAPTER- VIII

Authorities, Records, Return and Recovery

24. Conditions to acquire, hold, sell or otherwise transfer any movable or immovable property under sub-section (1), conditions to invest moneys, re-invest or realise investments under sub-section (2), terms to raise loans and take measures for discharging such loans under sub-section (3) and terms to constitute for the benefit of officers and staff or any class of them, provident or other benefit funds under sub-section (4) of section 120; State Government may notify the conditions after consultation with Finance Department.

25. Conditions and manner of writing off irrecoverable dues under section 121- Where Bihar Unorganized Workers Social Security Board is of the opinion that the amount of contribution, cess, interest and damages due to board has become irrecoverable, the Board or any other officer authorised by it in this behalf may sanction the writing off of the said amount, subject to the following conditions, namely: —

- (i) Establishment has been closed for more than five years and the whereabouts of the employer cannot be ascertained, despite all possible efforts;
- (ii) Decree obtained by the Board could not be executed successfully for want of sufficient assets of the defaulting employer; or
- (iii) Claim for contribution is not fully met by —

- (a) The Official Liquidator in the event of factories/establishments having gone into liquidation; or
- (b) In the event of unit being nationalised or taken over by the Government.

26. Other powers of Inspector-cum-Facilitator under clause (e) of sub-section (6) of section 122- In addition to powers in sub-section (6) of Section 122, Inspector cum facilitator may exercise such other powers and shall perform such other duties as may be assigned by State Government by general or special order.

27. Form and manner for maintenance of records and registers and other particulars and details under clause (a), manner and form for display of notices at the work places of the employees under clause (b) and the manner and period of filing returns to the officers or authority under clause (d) of section 123- (1) (a) the employer of every establishment shall maintain, register –

- (i) of employees in Form – I of the Code on Wages (Bihar) Rules, 2026;
- (ii) of attendance-cum-muster roll in Form - IX of the Code on Wages (Bihar) Rules, 2026;
- (iii) of wages, overtime, advances, fines and deductions for damages and losses in Form – IV of the Code on Wages (Bihar) Rules, 2026;
- (iv) of women employees in Form – XXI:

Provided that in respect of establishment which is governed by the Code on Wages, 2019(29 of 2019) or the Code on Occupational Safety, Health and Working Conditions, 2020 (37 of 2020) and rules made thereunder maintain the registers specified in clause (i), (ii) and (iii) which shall be deemed to be maintained by the employer under these rules also.

(b) Registers under this Chapter shall be maintained electronically or otherwise.

(c) Entries in the registers shall be made in English and Hindi or the language understood by a majority of persons employed.

(d) Every employer shall produce records and registers, on demand before the Inspector-cum-Facilitator or any person authorised in that behalf by the State Government.

(e) All the registers and other records shall be preserved in original for a period of five calendar years from the date of last entry made therein.

(2) Every employer shall issue wage slips, electronically or otherwise to the employees under clause (c) of section 123 before 24 hours of payment of wages in **Form – V of the Code on Wages (Bihar) Rules, 2025**.

(3) All registers and other records required to be maintained under the Code and the rules made thereunder shall be maintained complete and up-to-date and unless otherwise provided by the

State Government, shall be kept at an office or the nearest convenient building within the precincts of the workplace or at a place within a radius of three kilometres therefrom.

(4) The employer shall display conspicuously a notice at or near the main entrance of the establishment in bold letters in English, Hindi and in a language understood by the majority of the employees specifying the name of the officer with designation authorised by the employer to receive, on his behalf, notices under the Code or the rules made therein.

(5) (a) The employer to which the provisions of Chapter V and Chapter VI of the Code apply, on or before the 1st day of February in each year, upload a unified annual return in Form-XXII online on the web portal provided for this purpose, giving information as to the particulars specified, in respect of the preceding year:

Provided that during inspection, the Inspector-cum-Facilitator may require the production of accounts, books, registers and other documents maintained in electronic form or otherwise.

Explanation- For the purposes of this sub-rule, the expression “electronic form” shall have the same meaning as assigned to it in clause (r) of section 2 of the Information Technology Act, 2000 (21 of 2000).

(b) If the employer to whom the provisions of Chapter V and Chapter VI of the Code apply, sells, abandons or discontinues the working of the establishment, then, he shall, within one month of the date of such sale or abandonment or four months of the date of such discontinuance, as the case may be, upload online, on the web portal provided for this purpose, a further unified return in Form XXII referred to in clause (a) in respect of the period between the end of the preceding year and the date of such sale, abandonment or discontinuance, as the case may be.

(6) Records kept under the provisions of Chapter V of the Code and the rules framed thereunder shall be preserved for a period of ten years from the date of their preparation.

(7) Every employer shall file such returns electronically or otherwise to such officer or authority as may be fixed by State Government by general or special order.

Chapter IX

OFFENCES AND PENALTIES

28. Form and manner of application for compounding of an offence under sub-section (4) of section 138.-

(1) The officer authorized by the State Government by notification for the purposes of compounding of offences under sub-section (1) of section 138 shall issue electronically or otherwise a compounding notice in Form-XXIII for the offences for which are compoundable under section 138.

(2) The person so noticed may apply in the Form-XXIV to the officer electronically or otherwise and deposit the entire compounding amount by electronic transfer or otherwise, within fifteen days of the receipt of the notice.

(3) The Compounding Officer shall issue a composition certificate in Form-XXV within ten days of receipt of the composition amount, to such person from whom such amount has been received in satisfaction of the composition notice.

(4) If a person so noticed fails to deposit the composition amount within the prescribed time, the prosecution shall be instituted before the competent Court or the offence in respect of which the compounding notice was issued, against such person.

(5) Where an offence has been compounded under sub-section (1), no further proceeding shall be taken against the occupier in respect of such offence.

(6) Where any offence is compounded before the institution of any prosecution, no prosecution shall be instituted in relation to such offence, against the offender in relation to whom the offence is so compounded.

(7) Where the compounding of any offence is made after the institution of any prosecution, such compounding shall be brought to the notice of the court in which the prosecution is pending in writing by the officer referred to in sub-section (1), and on such notice of the compounding of the offence being given to the court, the person against whom the offence is so compounded shall be discharged.

Chapter X

Employment information and monitoring

29. Manner and form of reporting vacancies and form of filing the return by the employer, to the concerned career centre under sub-section (2) of section 139.-

(1) Reporting of Vacancies to Career Centers: (a) After the commencement of this Code in the State or area thereof, the employer in every establishment in public sector in that State or area shall, before filling up any vacancy in any employment in that establishment, report that vacancy or cause to be reported to such Career Centre as may be specified in the notification by the State Government.

(b) The employer in every establishment in private sector or every establishment pertaining to any class or category of establishments in private sector shall, before filling up any vacancy in any employment in that establishment, report that vacancy or cause to be reported to such Career Centre from such date as may be specified in the notification by the State Government.

(c) State Government shall provide for mechanism (including digital) for receipt of vacancies reported by the employers. Career Centre to which the vacancies are reported, would provide a unique vacancy reporting number for the vacancy reported and convey it to the

employer in writing, through email or digitally or through any other such media immediately but in any case not later than three working days from the date of receipt of reporting of vacancies.

Explanation: (1)*Establishment in “public sector”* means an establishment owned, controlled or managed by -

- (i) the Government or a Department of the Government
- (ii) a Government company as defined in clause (45) of Section 2 of the Companies Act, 2013 (No. 18 of 2013);
- (iii) a corporation (including a co-operative society) or an autonomous organization or an authority or a body established by or under a Central or State Act, which is owned, controlled or managed by the Government; and
- (iv) a local authority.

(2) Type of vacancies and respective Career Centre for reporting of vacancies: (a) The following vacancies, namely-

- (i) All vacancies in posts of Technical and Scientific nature carrying a minimum pay or pay level or both as notified by the State Government, occurring in establishments in respect of which the State Government is the appropriate Government under the Code;and
- (ii) Vacancies which an employer may desire to be circulated to the Career Centers outside the State or Union Territory in which the establishment is situated shall be reported to such Career Centre as may be specified by the State Government by *notification*.

(b) Vacancies which have been reported to the Career Centre and for which recruitment is to be made on State or Inter-State or all India basis, shall also be reported to Career Centre(Central) or uploaded on a digital portal as specified by the Central Government by notification.

(3) Form and manner of reporting of vacancies (a) The vacancies shall be reported in writing or through valid official email or digitally to the Career Centre specified by the State Government.

(b) The vacancies shall be reported in the format given at **Form XXVI**, furnishing as many details as practicable, separately in respect of each type of vacancy.

(c) Any change in the particulars already furnished to the Career Centre under clause (a) of sub-rule(3), shall be reported in writing or through official email or digitally as the case may be, to the specified Career Centre.

(4). Time limit in the reporting of vacancies: Vacancies, required to be reported to the Career Centre, shall be reported at least fifteen days before the last date of receipt of the applications of the prospective candidates for purpose of appointment or taking interview or test against the vacancies reported.

(5). Maintenance of records: (a) After commencement of this Code in any state or area thereof, the employers in every establishment in the public sector in that state or area shall maintain records manually or electronically or digitally about

- i) Total number of employees (regular, contractual or fixed term employment) on 31st March of every year;
- ii) Persons recruited during the year ending on 31st March;
- iii) Occupational details of its employees on 31st March of every year;
- iv) Vacancies for which suitable candidates were not available during the year ending on 31st March; and
- v) Approximate number of vacancies likely to occur during the next financial year.

(b) State Government may by notification, require that from such date as may be specified in the notification, the employer in every establishment in private sector or every establishment pertaining to any class or category of establishment in private sector shall maintain records manually or electronically or digitally about

- i) Total number of employees (regular, contractual or fixed term employment) on 31st March of every year;
- ii) Persons recruited during the year ending on 31st March;
- iii) Occupational details of its employees on 31st March of every year;
- iv) Vacancies for which suitable candidates were not available during the year ending on 31st March; and
- v) Approximate number of vacancies likely to occur during the *next financial year*.

(6) Submission of returns: An employer shall furnish to the concerned Career Centre yearly returns in form EIR (Employment Information Return) as given at **Form-XXVII** Yearly returns shall be furnished manually or, electronically, or digitally, as the case may be, as specified by the respective State Government in notification, within thirty days of the due date namely 31st March of the year.

(7). Declaration of Executive Officer: The Director of Employment, controlling the work of Career Centers of the respective State Government, will declare in writing an officer looking after the work of Career Centers as “Executive Officer” for each district for the purpose of enforcement /implementation of Chapter XIII (Employment Information and Monitoring) of the Code. He shall be the officer who shall exercise the rights and perform duties referred to in section 139 of the Code, or authorize any person in writing to exercise those rights and perform duties.

(8). Levy of penalty under the Chapter XIII of the Code: The Director of Employment or an officer of equivalent or above rank, controlling the work of Career Centers, of the respective State shall be the competent authority to approve institution or sanction the institution of levy of penalty for an offence under the Code as mentioned in section 133.

30. Constitution of Fund under Clause (ii) of sub-section (5) of Section 141:- In addition to source of fund mentioned in Clause (i) sub-section (5) of Section 141, the amount received from the following sources shall be credited to the Fund:-

- (i) Amount given by the State Government for the establishment of the fund.
- (ii) The amount of grant given by the Government of India, the State Government and other authorities and statutory bodies.
- (iii) Amount received for registration/renewal of beneficiaries and their contribution.
- (iv) Amount received for implementation of the scheme notified by the Government of India.
- (v) Amount received for implementation of the scheme notified by the State Government.
- (vi) Contribution or donation or any other financial support from employer, their association or from Corporate Social responsibility (CSR) Fund as determined by the State Government by general or special order.
- (vii) Any other source which is approved by State Government through notification.

FORM I
(See Rule 5)
Appeal to Employees' Insurance Court

To,

The Authority,
(Appointed under the Code on Social Security, 2020)
.....(Address)

Sir,

I....., the undersigned, employee of..... (Name and full address of the establishment). Feel aggrieved by the order of under sub section 7(a) of section 37 for the reasons attached hereto, prefer this second appeal under sub-section 7(b) of section 37 and request that the said be ordered

A copy of the order of in this behalf is enclosed.

Signature or thumb impression
of the Aggrieved person

Signature of an Attester in case the person

is not able to sign and affixes thumb impression.

Date

Form II
[See rule 6 (2)]

Before the Employee Insurance Court at: _____

Application No.: _____ of 20____

In the matter of:

Applicant:

1. Full Name: _____
2. Age: _____
3. Occupation: _____
4. Full Postal Address: _____

Details of Minor / Person of Unsound Mind (if applicable)

- The Applicant/Opposite Party is a minor/person of unsound mind.
- Name of Guardian / Next-of-Kin / Authorized Person: _____
- Age: _____
- Full Postal Address: _____

Versus

Opposite Party:

1. Full Name: _____
2. Full Postal Address: _____

Particulars of the Application

1. Cause of Action

The facts constituting the cause of action are as follows:

Date on which cause of action arose: ____ / ____ / ____

2. Jurisdiction

The Applicant submits that this Hon'ble Court has jurisdiction to entertain this application because:

3. Relief Claimed

The Applicant respectfully prays that this Hon'ble Court may be pleased to:

And pass any other order(s) deemed fit and proper in the interest of justice.

Verification

I, _____, the Applicant above named, do hereby verify that the contents of this application are true and correct to the best of my knowledge and belief.

Place: _____

Date: ____ / ____ / ____

Signature of Applicant: _____

Name: _____

List of Enclosures (if any)

Signature of Applicant
(verification by the applicant)

The statement of facts contained in this application is to the best of my knowledge and belief, true and correct.

.....
Signature

Date

FORM III
[(See Rule 6(2)(iv))]
Register of Applications

Employee's Insurance Court at

Register of proceedings in the year 20.....

1	Date of presentation of application	
2	No of proceedings	
3	Name	Applicant
4	Description	
5	Place of residence	
6	Particulars	opposite party
7	Amount of value, if any	
8	place of residence	Claim
9	particulars	
10	amount or value, if any	
11	when the cause of action accrued	
12	day of parties to appear	appearances
13	applicant	
14	opposite-party	
15	date	final
16	for whom	
17		
18	Order	
19	Date of Decision of appeal, if any	appeal
20	judgment in appeal,	
21	Date of application	executive
22	against whom	
23	For what, and amount of money	
24	amount of costs	
25	Date of order transferring to another civil court	
26	other remarks, if any	

Form IV
[See Rule 7 (2)]
Nomination

To

(Give here name or description of the establishment with full address)

(Name in full here)

I, Shri/Shrimati/Kumari.....whose particulars are given in the statement below, hereby nominate the person(s) mentioned below to receive the gratuity payable after my death as also the gratuity standing to my credit in the event of my death before that amount has become payable, or having become payable has not been paid and direct that the said amount of gratuity shall be paid in proportion indicated against the name (s) of the nominee(s).

2. I, hereby certify that the person (s) mentioned is a/are member (s) of my family within the meaning sub section (33) of section 2 of the code.

3. I hereby declare that I have no family within the meaning of sub-section (33) of Section 2 of the Code.

4 (a) My father/mother/parents is/are not dependent on me.

(b) My husband's father/mother/parents is/are not dependent on my husband.

NOMINEE(S)

Name in full with full address of nominee(s)	Relationship with the employee	Age of nominee	Proportion by which the gratuity will be shared
1	2	3	4
1.			
2.			
3.			
4.			
so on			

STATEMENT

1. Name of The Employee in full.
2. Sex.
3. Religion.
4. Whether unmarried/married/widow/widower.

5. Department/branch/section where employed.
6. Post held with ticket no., or serial no., if any
7. Date of appointment
8. Permanent address

Village,	Thana,	Sub-division
Post office,	District	State

Place signature/thumb-impression

Date of the employee.

Declaration by witness

Nomination signed/thumb-impressed before me

Name in full and full address

Of witness

signature of witness

1.

1.

2.

2.

Certificate by the employer

Certified that the particulars that of the above nomination have been verified and recorded in the establishment. Employer's reference no., If any.

Signature of the employer/officer authorized
Designation

Date name and the address of the establishment
Or rubber stamp there of.

Acknowledgment by the employee

Received the duplicate copy of nomination in form 'f' filed by me and duly certified by the employer.

Date signature of the employee.

Note-Strike out the words and paragraphs not applicable.

Form V
[See Rule 7 (2) (3)]
Fresh Nomination

To

.....
.....

Give her name or description of the establishment with full address.)

I, sri/srimati.....(name in full here) whose particulars are given in the statement below, have acquired a family within the meaning of sub-section (33) of section 2 of the code with effect from the (date here)..... in the matter indicated below and therefore nominate a fresh person(s) mentioned below to receive the gratuity payable after my death as also the gratuity standing to my credit in the event of my death before that amount has become payable or having become payable has not been paid, direct that the said amount of gratuity shall be paid in proportion indicated against the name(s) of the nominee(s).

2. I hereby certify the person(s) nominated is a/are member(s) of my family within the meaning of sub-section (33) of section 2 of the code.

3.(a) my father/mother/parents is/are not dependent on me.

(b) my husband's father/mother/parents is/are not dependent on my husband.

4. I have excluded my husband from my family by a notice, dated the to the controlling authority in terms of the proviso to sub-section (33) of section 2 of the code.

NOMINEE(S)

Name in full with address of nominee(s)	Relationship with the employee	Age of nominee	Proportion by which the gratuity will be shared
1	2	3	4

Manner of acquiring a 'family'

(here give details as to how a family was acquired, i.e. whether by marriage or parents being rendered dependent or through other process like adoption.)

STATEMENT

1. Name of The Employee.
2. Sex.
3. Religion
4. Whether unmarried/married/widow/widower
5. Department/branch/section where employed
6. Post held with ticket no., or serial no., if any.
7. Date of appointment

8. Permanent address

Village,
Post office,

Thana,
District,

Sub-division,
State

Place

Date

signature/thumb-impression of the employee

Declaration by witnesses

Fresh nomination signed/thum-impressed before me.

Name in full and full address of witness.

Signature of witnesses

1.

1.

2.

2.

CERTIFICATE BY THE EMPLOYER

Certified that the particulars of the above nomination have been verified and recorded in this establishment.

Employer's reference no., if any.

Signature of the employer /officer authorised.

Designation .

Name and address of the establishment

Or rubber stamp thereof.

Acknowledgment by the employee

Received the duplicate copy of the nomination in form's' filed by me on..... , duly certified by the employer.

Date

signature of the employee

Note-Strike out the words and paragraphs not applicable.

FORM VI
[SEE RULE 7 (2) (4)]
MODIFICATION OF NOMINATION

To

[Give here name or description of the establishment with full address]

I, Shri/Shrimati/Kumari.....[Name in full here] whose particulars are given in the statement below, hereby give notice that the nomination filed by me on [date] and recorded under your reference No.dated.....shall stand modified in the following manner. [Here give details of modifications intended]

STATEMENT

1. Name of employee in full.
2. Sex.
3. Religion.
4. Whether unmarried/married/widow/widower.
5. Department /Branch/Section where employed.
6. Post held with Ticket or Serial No. if any.
7. Date of appointment.
8. Address in full.

Place

Signature/Thumb impression of the employer

Date

DECLARATION BY WITNESSES

Modification of nomination signed/thumb impressed before me.

Name in full and full address of witnesses.

Signature of witnesses

- | | |
|----|----|
| 1. | 1. |
| 2. | 2. |

Place

Date

CERTIFICATE BY THE EMPLOYER

1. Certified that the above modification have been recorded.
2. Employer's Reference No., if any.

Signature of the employer/ officer authorized

Designation

Name and address of the Establishment

or rubber stamp thereof.

ACKNOWLEDGMENT BY THE EMPLOYEE

Received the duplicate copy of the notice for modification in Form 'H' filed by me on.....duly certified by the employer.

Date

Signature of the employee

Note

FORM-VII

(See Rule 8(1))

Application for Gratuity by an Employee/Nominee/Legal Heir

(Strike out the words not applicable)

To,

.....

(Give here name or description of the establishment with full address)

Sir/Madam,

I,(name of employee/nominee/legal heir) /nominee of late.....(Name of the employee)/ as a legal heir of late.....(Name of the employee), beg to apply for payment of gratuity to which I am entitled under sub-section (1) of section 53 of the Code on Social Security, 2020 on account of-

(a) my superannuation/retirement/resignation after completion of not less than five years of continuous service/total disablement due to accident/total disablement due to disease/ on termination of contract period under fixed term employment with effect from the.....or;

(b) death of the aforesaid employee while in service/superannuation on.....after completion of.....years of service/total disablement of the aforesaid employee due to accident or disease while in service with effect from the..... or;

(c) death of aforesaid employee of your establishment while in service/superannuation on.....(date) without making any nomination after completion ofyears of service/total disablement of the aforesaid employee due to accident or disease while in service with effect from.....

Necessary particulars relating to my appointment are given in the statement below.

1. Name of employee in full, (if, the gratuity is claimed by an employee)
 - a. Marital status of employee(unmarried/married/widow/widower)
 - b. Address in full of employeeor
2. Name of nominee/legal heir, (if the gratuity is claimed by nominee/legal heir)
 - a. Name of Employee
 - b. Marital status of nominee/legal heir(unmarried/married/widow/widower)
 - c. Relationship of nominee/legal heir with the employee
 - d. Address in full of nominee/legal heir
 - e. Date of death and proof of death of the employee
 - f. Reference No. of recorded nomination if available
3. Department/Branch/Section where last employed
4. Post held by employee.
5. Date of appointment.
6. Date and cause of termination of service
7. Date of Death
8. Total period of service of the employee

9. Total wages last drawn by the employee.
10. Total gratuity payable to the employee/ share of gratuity claimed by a nominee/legal heir.
11. Payment may please be made by crossed bank cheque/credit in my bank account no.....

Yours faithfully,
Signature/Thumb-impression of the
applicant employee/ nominee/legal heir.

Place:

Date:

FORM-VIII

[(See Rule 8(i]

Notice for Payment/Rejecting claim of Gratuity

(Strike out the words not applicable)

To,.....

(Name and address of the applicant employee/nominee legal heir)

You are hereby informed that

(a) *as required under clause (b) sub-rule (2) of rule 8 of the Social Security (Bihar) Rules, 2026, that your claim for payments of gratuity as indicated on your application in **Form-VII** under the said rules is not admissible for the reasons stated below:

Reasons (Here specify the reasons); or

(b) *as required under clause (a) sub-rule (2) of rule 8 of the Social Security (Bihar) Rules, 2026 that a sum of Rs.(Rupees.....) is payable to you as gratuity/as your share of gratuity in terms of nomination made byon.....and.....recorded in this as a legal heir of.....an employee of this establishment.

2. *Please call aton..... (Here specify place).....(date) at.....(time) for collecting your payment of gratuity crossed cheque.

3. Amount payable shall be sent to you through demand draft or shall be credited in your bank account as desired by you.

4. Brief statement of calculation

(a) Date of appointment.

(b) Date of termination/superannuation/resignation/ disablement/death.

(c) Total period of service of the employee concerned:years..... months.

(d) Wages last drawn:

(e) Proportion of the admissible gratuity payable in terms of nomination/as a legal heir:

(f) Amount payable:

Place:

Date:

Signature of the Employer/authorised officer.

Name or description of establishment or rubber stamp thereof.

Copy to: The Competent Authority in case of denial of gratuity.

Copy also to: Office of DG Labour Bureau, Ministry of Labour and Employment, Chandigarh.

FORM-IX
[(See Rule 8(4))]
Application for Direction

Before the Competent Authority for Chapter V under the Code on Social Security, 2020

Application No., Date

BETWEEN

(Name in full of the applicant with full address)

AND

(Name in full of the employer concerned with full address)

The applicant is an employee of the above-mentioned employer/a nominee of late..... an employee of the above-mentioned employer/a legal heir of late..... and employee of the abovementioned employer, and is entitled to payment of gratuity under section 53 of the Code on Social Security, 2020 on account of his own/aforesaid employee's superannuation on.....(date)/his own retirement/aforesaid employees' resignation on.....(date) completion of.....years of continuous service/his own/aforesaid employees' total disablement with effect from(date) due to accident/disease death of aforesaid employee on.....

2. The applicant submitted an application under Bihar Rule 8(1) of the Code on Social Security (Bihar) Rules, 2025 on thebut the above-mentioned employer refused to entertain it/issued a notice dated the..... under clauseof sub-rule of ruleoffering an amount of gratuity which is less than my due/issued a notice datedthe under clause..... of sub-rule.....of rule..... rejecting my eligibility to payment of gratuity. The duplicate copy of the said notice is enclosed.

3. The applicant submits that there is a dispute on the matter (specify the dispute).

4. The applicant furnishes the necessary particulars in the annexure hereto and prays that the Competent Authority may be pleased to determine the amount of gratuity payable to the petitioner and direct the above-mentioned employer to pay the same to the petitioner.

5. The applicant declares that the particulars furnished in the annexure hereto are true and correct to the best of his knowledge and belief.

Date:

Signature/Thumb impression of the applicant.

ANNEXURE

1. Name in full of applicant with full address
2. Basis of claim (Death/Superannuation/Retirement/Resignation/Disablement of Employee/Completion of contract period under Fixed Term Employment)
3. Name and address in full of the employee

4. Marital status of the employee (unmarried/married/widow/widower)
5. Name and address in full of the employer
6. Department/Branch/Section where the employee was last employed (if known)
7. Post held by the employee with Ticket or Sl. No., if any (if known)
8. Date of appointment of the employee (if known)
9. Date and cause of termination of service of the employee (Superannuation / retirement /resignation/disablement/death/Completion of contract period under Fixed Term Employment)
10. Total period of service by the employee
11. Wages last drawn by the employee
12. If the employee is dead, date and cause thereof
13. Evidence/witness in support of death of the employee
14. If a nominee, No. and date of recording of nomination with the employer
15. Evidence/witness in support of being a legal heir if a legal heir
16. Total gratuity payable to the employee (if known)
17. Percentage of gratuity payable to the applicant as nominee/legal heir
18. Amount of gratuity claimed by the applicant

Signature/Thumb-impression of the applicant

Place:

Date:

FORM – X

[(See Rule 8 (5),(8)]

Notice for Appearance before the Competent Authority/Summon

(Strike out the words not applicable)

To,

(Name and address of the employer/applicant)

Whereas Shrian employee under you/a nominee(s)/legal heir(s) of Shri.....an employee under the above-mentioned employer, has/have filed an application under sub-rule of rule of the Social Security(Bihar) Rules, 2026 alleging that..... (A copy of the said application is enclosed, if, summon is issued then copy of application is not required) Now, therefore, you are hereby called upon/summoned to appear before the Competent Authority at(place)either personally or through a person duly authorized in this behalf for the purpose of answering all material questions relating to the application on the day of20..... at 'O' clock in the forenoon/afternoon in support of/to answer the allegation; and as the day fixed for your appearance is appointed for final disposal of the application, you must be prepared to produce on that day all the witnesses upon whose evidence, and the documents upon which you intend to rely in support of your allegation/defence.

Take notice that in default of your appearance on the day before-mentioned, the application will be dismissed/heard and determined in your absence.

Whereas your attendance is required to give evidence/you are required to produce the documents mentioned in this list below, on behalf of in the case arising out of the claim for gratuity by..... Form..... and referred to this Authority by an application under section 56 of the Code on Social Security, 2020, you are hereby summoned to appear personally before this Authority on the day of20..... at 'O' clock in the forenoon/afternoon and to bring with you for to send to this Authority) the said documents.

List of documents-

- 1.
- 2.
3. so on

Given under my hand and seal, thisday of20.....

Competent Authority
under the Code on Social Security Code, 2020

Note:

1. Strike out the words and paragraphs not applicable.
2. The portion not applicable to be deleted.
3. The summons shall be issued in duplicate. The duplicate is to be signed and returned by the persons served before the date fixed.
4. In case the summons is issued only for producing a document and not to given evidence it will be sufficient compliance to the summons if the documents are caused to be produced before the competent authority on the day and hour fixed for the purpose.

FORM – XI

[(See Rule 8(11) and (12)]

Notice for Payment of Gratuity as Determined by Competent/Appellate Authority

(Strike out the words not applicable)

To,

(Name and address of employer)

1. Whereas Shri/Smt./Kumari.....of an employee
..... (address) under you/a nominee(s) / legal heir(s) of late
.....an employee under you, filed an application under
section 56 of the Code on Social Security, 2020, before me; or

Whereas a notice was given to you onrequiring you to make
payment of Rs.....to Shri/Smt./Kumari.....as
gratuity under the Code on Social Security, 2020.

2. And whereas the application was heard in your presence on.....and after the
hearing have come to the finding that the said
Shri/Smt./Kumari..... is entitled to a payment of
Rs..... as gratuity under the Code on Social Security, 2020; or

Whereas you/the applicant went in appeal before the appellate authority, who has
decided that an amount of Rs..... is due to be paid to
Shri/Smt./Kumari.....as gratuity due and the amount as interest due under
The Code on Social Security, 2020.

Now, therefore, I hereby direct you to pay the said sum of Rs.to
Shri/Smt./Kumari within thirty days of the receipt of this notice
with an intimation thereof to me.

Given under my hand and seal, thisday of.....20.....

Competent Authority

under the Code on Social Security Code, 2020

Copy to:

1. The Applicant- He is advised to contact the employer for collecting payment.
2. The Appellate Authority if applicable.

Note.--- *(Strike out paragraphs if not applicable)*

FORM – XII

[(See Rule 8(13)]

Application for Recovery of Gratuity

Before the Competent Authority for Chapter V under the Social Security Code, 2020

Application No.

Date

BETWEEN

(Name in full of the applicant with full address)

AND

(Name in full of the employer/Trust/Insurer concerned with full address)

1. The applicant is an employee of the above-mentioned employer/a nominee of late..... an employee of the above mentioned employer/a legal heir of latean employee of the above-mentioned employer, and you were pleased to direct the said employer in your notice dated the for payment of a sum of Rs..... as gratuity payable under the Code on Social Security, 2020.
2. The applicant submits that the said employer failed to pay the said amount of gratuity to me as directed by you although I approached him for payment.
3. The applicant therefore prays that a certificate may be issued under section 129 of the Code for recovery of the said sum of Rs. due to me as gratuity in terms of your direction.

Signature/Thumb-impression of applicant.

Place:

Date:

Note.—Strike out the words not applicable.

FORM-XIII

[See Rule-9(3)]

Application for Registration of an Establishment under sub-section (3) of Section 57.

A. Establishment Details.

1. Retrieve details of Establishment through LIN/Registration Number:
2. Name of Establishment:
3. Location and Address of the Establishment:
4. Others details of Establishment:
 - a. Total Number of employees engaged directly in the establishment:
 - b. Total Number of the contract employees engaged:
 - c. Total Number of Inter-State Migrant workers employed:
5. Ownership Type/Sector:
6. Activity as per National Industrial Classification (NIC):
7. Details of Selected NIC Code:
8. Identification of the establishment, e-sign/ digital sign of employer/ representative:

B. Details of Employer:-

1. Name & Address of Employer / Occupier / Owner/Agent/ Chief Executive-
2. Designation:
3. Father's/ Husband's Name of the Employer:
4. Email Address, Telephone & Mobile No:

C. Manager/ Agent Details

1. Full name & Address of Manager/ Agent or person responsible for supervision and control of the Establishment;
2. Address of Manager/ Agent:
3. Email Address, Telephone& Mobile No :

D. Details of Approved Gratuity Fund/Insurance obtained for liability of payment towards the Gratuity;

E. Others Details:-

Signature/ E-sign/digital sign of employer

Dated:-

Place:-

FORM – XIV

[See Rule 11(1)(a)]

Complaint to the Inspector-cum-Facilitator

To,

The Inspector-cum-Facilitator

(Under The Code on Social Security, 2020)

Sir,

I..... (Name of woman) employed in..... (name and full address of the establishment) or I....., (name), a person nominated under section 62 by or a legal representative of.....(name of woman) employed in.....(name and full address of the establishment) having fulfilled the conditions laid down in the Code on Social Security , 2020 and the Rules thereunder, am entitled to Rs..... being maternity benefit and/ or Rs..... being the medical bonus and/ or Rs..... being wages for leave due under section 65 but the same has been improperly withheld by the employer/discharged or dismissed during or on account of her absence from work in accordance with the provisions of this Chapter VI of Code on Social Security , 2020.

You are therefore requested, to direct the employer to pay the amount to me/ to set aside the discharge or dismissal done by the employer.

Signature or thumb impression of the Woman/
nominee/ legal representative

Date.....

Signature of an Attester in case the woman/
nominee/ legal representative is
unable to sign and affixes thumb impression.
Full address of the women/nominee/legal representative.

FORM-XV
[See Rule 11 (2) (b)]
Appeal

To,

The Authority,
(Appointed under the Code on Social Security, 2020)
..... (Address)

Sir,

I....., the undersigned, woman employee of..... (name and full address of the establishment)

*Feel aggrieved by the order of Inspector-cum-Facilitator under sub section (2) of section 72 for the reasons attached hereto, prefer this appeal under sub-section (2) of section 68 and request that the said employer be ordered to pay the above mentioned amount to me. A copy of the order of Inspector-cum-Facilitator cum Facilitator in this behalf is enclosed; or

*Shri....., Inspector-cum-Facilitator, having directed under sub-section (2) of section 72 to pay the maternity benefit or other amount being..... (Nature of amount) to which..... (Name of woman) is said to be entitled/to set aside my discharge or dismissal during or on account of absence from work in accordance with the provisions of this Chapter V of the Code on Social Security , 2020(*Strike out unnecessary portion*).

I prefer this appeal under sub-section (3) of section 72. In view of the facts mentioned in the memorandum attached hereto and other documents filed herewith it is submitted that the woman is not entitled to the maternity benefit or the said amount and hence the order of the Inspector-cum-Facilitator in the copy of which is enclosed, may be set aside.

**Strike out unnecessary portion.*

Signature or thumb impression of the Women
/Aggrieved person

Date.....

Signature of an Attester in case the woman is
not able to sign and affixes thumb impression.
Full address of the nominee/legal representative

Form XVI

(See rule 14)
(Notice Book of the Accidents)

Name of the Establishment.....

Nature of Business

Date of opening.....

Registration no (if any)-.....

Name of the employer/occupier.....

Date of accidents	Short detail of Accident	Name of the injured person	Whether accident result in death	Whether accident result in total disablement	Whether accident result in partial disablement	Whether accident result in Temporary disablement	Amount of Compensation paid to employee or his dependent	Amount of Compensation deposited to Competent Authority	Date of payment or deposit of Compensation
1	2	3	4	5	6	7	8	9	10

FORM XVII
(See Rule 16)
Statement of Fatal Accidents

To ,

Competent Authority,

.....

Sir,

1. I have the honor to submit the following statement of an accident which occurred in (date), at (here enter details of premises) and which resulted in the death of the employee/employees of whom particulars are given in the statement annexed.
2. The circumstances relating to the death of the employee/employees were as under: -
 - a. Time of accident.
 - b. Place where the accident occurred.
 - c. Manner in which deceased was/were employed at the time.
 - d. Cause of the accident.
 - e. Any other relevant particulars.
3. I am responsible for payment of compensation.
4. Details of employee
 - a. Name of the employee
 - b. Age of the employee
 - c. Wages of the employee
5. The establishment is not responsible for payment of compensation due to reasons mentioned below

(Signature and designation
of person making the statement)

FORM XVIII

(See Rule 17)
Memorandum of Agreement

It is hereby submitted that on the day of 20..... personal injury was caused to residing at by accident arising out of and in the course of his employment in The said injury has resulted in permanent disablement to the said workman of the following nature, namely:-

The said employee's monthly wages are estimated at Rs. The employee is over the age of 15 years will reach the age of 15 years on

The said employee has, prior to the date of the agreement, received the following payments, namely: --

Rs. on Rs. on
Rs. on Rs. on
Rs. on Rs. on

It is further submitted that the employer of the said employee has agreed to pay, and the said employee has agreed to accept, the sum of Rs. in full settlement of all and every claim under the Code on Social Security, 2020 in receipt of the disablement stated above and all disablement now manifest. It is therefore requested that this memorandum be duly recorded.

Dated
.....

Signature of employer Witness

Witness
Signature or employee

Note- Application to register an agreement can be presented under signature of one party: provided that the other party has agreed to the terms. But both signatures should be appended, whenever possible.

Receipt (to be filled in when the money has actually been paid)
In accordance with the above agreement, I have this day received the sum of Rs.....

Dated

Employee

The money has been paid and this receipt signed in my presence.

Witness

Note- This form may be varied to suit special cases, e.g. injury by occupational disease, agreement when employee is under legal disability, etc.

FORM XVIII-A

(See Rule 17)

Memorandum of Agreement

It is hereby submitted that on the day of personal injury was caused to residing at by accident arising out of said in the course of employment in The said injury has resulted in temporary disablement to the said employee, who is at present in receipt of wages amounting to Rs. per month/no wages.

The said employee's monthly wages prior to the accident are estimated at Rs. The employee is subject to a legal disability by reason of.

It is further submitted that the employer of the employee has agreed to pay and on behalf of the said employee has agreed to accept half-monthly payments at the rate of Rs. for the period of the said temporary disablement. This agreement is subject to the condition that the amount of the half-monthly payments may be varied in accordance with provisions of the said code on account of an alteration in the earnings of the said employee during disablement. It is further stipulated that all rights of commutation under Section 7 of the said Code are unaffected by this agreement it is therefore requested that this memorandum be duly recorded.

Dated

Signature of employer

Witness

Signature of employee

Witness

Note- An application to register and agreement can be presented under the signature of one party : provided that the other party has agreed to the terms. But both signatures should be appended, whenever possible.

Receipt (to be filled in when the money has actually been paid).

In accordance with the above agreement, I have this day received the sum of Rs.....

Employee

Dated

The money has been paid and this receipt signed in my presence.

Note- This form may be varied to suit special cases, e.g., injury by occupational disease, etc.

FORM XVIII-B
(See Rule 17)
Memorandum of Agreement

It is hereby submitted that on the day of personal injury was caused to residing at by accident arising out of and in the course of his employment in The said injury has resulted in death to the said workman.

The said employee's monthly wages are estimated at Rs. The employee is over the age of 15 years will reach the age of 15 years on

The said employee has, prior to the date of the agreement, received the following payments, namely: --

Rs. on	Rs. on
Rs..... on	Rs. on
Rs..... on	Rs on

It is further submitted that the employer of the said employee has agreed to pay, and dependent (s) of the said employee has agreed to accept, the sum of Rs. in full settlement of all and every claim under the Code on Social Security, 2020 in receipt of death stated above. It is therefore requested that this memorandum be duly recorded.

Dated

Signature of employer

Witness

Witness

Signature or dependant(s)

Note- Application to register an agreement can be presented under signature of one party: provided that the other party has agreed to the terms. But both signatures should be appended, whenever possible.

Receipt (to be filled in when the money has actually been paid)

In accordance with the above agreement, I have this day received the sum of
Rs.....

Dated

Dependant(s)

The money has been paid and this receipt signed in my presence.

Witness

FORM XIX
[(See Rule 17(2))]
Notice of Agreement

Whereas an agreement to pay compensation is said to have been reached between and and whereas has/have applied for registration of the agreement under Section 89 of the Code of Social Security, 2020 notice is hereby given that said agreement will be taken into consideration on and that any objections to the registration of the said agreement should be made on that date. In the absence of valid objections it is my intention to proceed to the registration of the agreement.

Dated20

Competent Authority

FORM XX
{See Rule 17(5)}
Register of Agreement

S.No.	Date of agreement	Date of registration	Employer	Employee	Initial of Competent Authority	Reference to orders rectifying the register
-------	-------------------	----------------------	----------	----------	--------------------------------	---

--	--	--	--	--	--	--

FORM – XXI

[(See Rule 27(1)(a))]

REGISTER OF WOMEN EMPLOYEES

Name of establishment

1. Serial Number.
2. Name of woman and her father's (or, if married, husband's) name.
3. Date of appointment.
4. Nature of work.
5. Dates with month and year in which she is employed, laid off and not employed.

Month	No. of days employed	No. of days laid off	No. of days not employed	Remark
a	b	c	d	e

6. Date on which the woman gives notice under section 62.
7. Date of discharge/dismissal, if any.
8. Date of production of proof of pregnancy under section 62.
9. Date of birth of child.
10. Date of production of proof of delivery/miscarriage/medical termination of pregnancy/tubectomy operation/death / adoption of child.
11. Date of production of proof of illness referred to in section 65.
12. Date with the amount of maternity benefit paid in advance of expected delivery.
13. Date with the amount of subsequent payment of maternity benefit.
14. Date with the amount of bonus, if paid, under section 64.
15. Date with the amount of wages paid on account of leave under section 65(1) & 65(3).
16. Date with the amount of wages paid on account of leave under section 65(2) and period of leave granted.
17. Name of the person nominated by the woman under section 62.
18. If the woman dies, the date of her death, the name of the person to whom maternity benefits and/or other amount was paid, the amount thereof, and the date of payment.
19. If the woman dies and the child survives, the name of the person to whom the amount of maternity benefit was paid on behalf of the child and the period for which it was paid.
20. Signature of the employer of the establishment authenticating the entries in the register of women employees.
21. Remarks column for the use of the Inspector-cum-Facilitator.

FORM XXII
[(See Rule 27(3)(a))]
Unified Annual Return

A. General Part:

- (a) Name of the establishment.....
 Address of the establishment:
 House No./Flat No.....Street No./Plot No
 Town.....District.....State.....
 pin code.....
- (b) Name of the employer
Address of the employer:
 House No./Flat No.Street No./Plot No.
Town.....District.....State.....
pin code.....E-mail ID.....Telephone
 Number.....Mobile number.....
- (c) Name of the manager or person responsible for supervision and control of
 establishment.....
 Address:
 House No./FlatNo.....Street No./ Plot No.....
 Town.....District.....State.....Pin code.....
 E-mail ID.....Telephone Number.....Mobile
 number.....

**B. Employer's Registration/Licence number under the Codes mentioned in column
 (2) of the table below:**

S. No. Name Registration If yes (Registration No.)

S.No.	Name	Registration	If yes (Registration No.)
1	2	3	4
01.	The Code on Occupational Safety Health and Working Code, 2020		
02	The Code on Social Security 2020.		
03	Any other Law for the time being in force.		

C. Details of Employer, Contractor and Contract Labour:

01.	Name of the employer in the case of a contractor's establishment.		
02.	Date of commencement of the establishment.		
03.	Number of Contractors engaged in the establishment during the year.		
04.	Total Number of days during the year on which Contract Labour was employed.		
05.	Total number of man-days worked by Contract Labour during the year.		
06.	Name of the Manager or Agent (in case of mines).		
07	Address House No./Flat No	Street/Plot No.	Town
	District	State	Pin Code
	E-mail ID	Telephone Number	Moblie Number

D. Working hours and weekly rest day:

01.	Number of days worked during the year.	
02.	Number of mandays worked during the year.	
03.	Daily hours of work.	
04.	Weekly day of rest.	

E. Maximum number of persons employed in any day during the year:

Sl. No.	Males	Females	Adolescents (between the age of 14 to 18 years.)	Children (below 14 years of age.)	Total

F. Wage rates (Category Wise):

Category	Rates of Wages	No. of workers							
		Regular				Contract			
		Male	Female	Children	Adolescent	Male	Female	Children	Adolescent

Highly									
Skilled									
Skilled									
Semiskilled									
Unskilled									

G. (a) Details of Payments:

Gross wages paid		Deductions			Net wages paid	
In cash	In kind	Fines	Deductions for damage or loss	Others	In cash	In kind

(b) Number of workers who were granted leave with wages during the year:

Sl. No.	During the year	Number of workers	Granted leave with wages

H. Details of various welfare amenities provided under the statutory schemes:

Sl. No.	Nature of various welfare amenities provided	Statutory (specify the statute)

I. Maternity Benefit under the Code on Social Security, 2020:

(a) Details of establishment, medical and Para-medical staff:

01	Date of opening of establishment	
02	Date of closing, if close	
03	Name of Medical Officer	
03(i)	Qualification of Medical Officer	
03(ii)	Is Medical Officer at (the mines or circus) ?	
03(iii)	If a part time, how often does he/she pay visit to establishment ?	
03(iv)	Is there any Hospital?	
03(v)	If so, how many beds are provided?	

03(vi)	Is there a lady Doctor?	
03(vii)	If so, what is her qualification?	
03(viii)	Is there a qualified mid-wife?	
03(ix)	Has any crèche been provided?	

(b) Leave Granted under the Code on Social Security, 2020

01	Total number of female employees in the establishment	
02	Total number days of leave granted	
03	Number of employees granted maternity leave/benefited by ESI	

Declaration

It is to certify that the above information is true and correct and also I certify that I have complied with the all provisions of Labour Laws applicable to my establishment.

Sign. Here

Place

Date

Form XXIII

[See rule-28(1)]

**NOTICE FOR UNDER SUB-SECTION (4) OF SECTION 56 FOR COMPOUNDING
OF OFFENCE**

To,

.....,
.....
.....

(1) Your establishment has been inspected by Inspector-cum-Facilitator on
..... of of 20.....

(2) In the said inspection you have been found violating Section
..... of the Code.

(3) As per provisions of sub-section (1) of Section 56 read with Sub-Rule (1)
of Rule 38, you are hereby given notice to the effect that if you are willing to
apply for composition of offence, you may apply for composition by submitting
the application in **Form XXIV** along with deposit of Rupees /- through
treasury challan or electronically on the departmental portal of Labour
Commissioner. The details of which are given below.-

(i) Treasury Head

--	--	--	--	--	--	--	--	--	--	--	--	--	--

Or

(ii) Flow chart of electronic payment.-

.....
.....
.....

(Signature)

Name and designation of the Officer.....

Form XXIV

[See rule-28(2)]

**APPLICATION UNDER SUB-SECTION (4) OF SECTION 138 FOR
COMPOUNDING OF OFFENCE**

To,

.....
.....
.....

Kindly refer to your notice no. dated
..... I/we hereby applying for composition of Offence and I have
deposited Rs...../- as the amount of Composition by depositing through
Treasury Challan or electronically through the portal of Labour Commissioner on
...../...../..... (dd/mm/year).

So please accept my application and close the proceeding under the
Code.

Dated:

Enclosure: The Treasury Challan/Payment receipt of electronic Payment.

(Signature)
Name of the Applicant

- (1) Name of the establishment:.....
(2) Address of Establishment :.....

FORM-XXV
[See Rule 28(3)]
Composition Certificate

Ref: Notice No.....

Date:

This is to certify that the offence under sub-section..... of section 133 in respect of which Notice No..... Dated : Was issued to Sh (Applicant), the employer of (name and Registration Number of establishment) has been compounded on account of remission of full amount of Registration Number of establishment) has been compounded on account of remission of full amount of Rs..... (Rupees) towards the composition of offences to the satisfaction of the said Notice.

(Signature)

Name of Designation of the Officer

Date:

Place:

To:

..... (Employer/Establishment)

.....(Name and registration number)

.....(Address)

FORM-XXVI

[See Rule 29(3)(b)]

Form for Reporting Vacancies to Career Centers

(Separate forms to be used for each type of posts)

1	Particulars of the employer: Name: Address with pin code: Telephone No. : Mobile No.: Email address : Name & Type of Establishment (Central Government, State Government, PSU, Autonomous, Private, etc) Registration No of establishment under Code: Economic activity details:		
2.	Particulars of the indenting Officer: Name: Designation: Telephone No. : Mobile No.: Email address :		
3.	Particulars of vacancy(ies): (a) Designation/nomenclature of the vacancy(ies) to be filled (b) Description of duties of the post (job role/functional role)		
	(c) Qualifications/Skills required (educational, technical, experience)	Essential	Desirable/Preferable
	(i) Educational Qualifications (ii) Technical Qualifications (iii) Skills (iv) Experience		
	(d) Age Limits, if any (Age as on last date of application)		
	(e) Preferences (such as Ex-servicemen, persons with disabilities, women, etc) if any		
	(f) duration of employment	Number of posts	

	(i) 3-6 months	
	(ii) 6-12 months (iii) 12 months and more	
4.	Whether there is any obligation for arrangement for giving reservation/preference to any category of persons such as Scheduled Caste(SC), Scheduled Tribe(ST), Economically Weaker Sections(EWS), Other Backward Classes(OBC), Ex-serviceman and persons with disabilities (pwd) , etc, in filling up the vacancies: Yes/No (if yes, give the number of vacancies to be filled by such categories of persons as detailed below)	
5.	Category	Number of vacancies to be filled
	(a) Scheduled Caste (b) Scheduled Tribe (c) OBC (d) EWS (e) Ex-Serviceman (f) Persons with disabilities (pwd) (g) women (h) Others(specify)	Total *By Priority candidates *(Applicable for Central Government vacancies)
6.	Pay and Allowances: For Government vacancies: Mention pay level/pay scale of the post with basic pay/pay per month with other details if any For others: Mention minimum total emoluments per month with other details, if any.	
7.	Place of work (Name of the town/village and district, pin code ,etc. in which it is situated)	
8.	Mode of Application(email, online, in writing, etc) and Last date for receipt of applications.	
9.	Particulars of officer to whom the applications be sent/candidates should approach	

	(Mention Name, designation, email id, address , telephone No., website address in case of online)	
10.	Mode of Recruitment {Through Career Centre, Placement Agency , self- management, any other mode(specify) }	
11.	Would like to prefer submission of list of eligible candidates registered with Career Centre	Yes/No
12.	Any other relevant information	
13.	Name, address, email id of the Career Centre	
14.	Date of receipt of Vacancies	
15.	NIC Code of the establishment/	
16.	NCO Code of the post	
17.	Unique Vacancy ID(number)	

Signature, Name & Designation of
Authorised Signatory of
establishment/ employer with seal & date

NOTE:

1. Career Centre to which the vacancies are reported, would provide a unique vacancy reporting number for the vacancy reported and convey it to the employer in writing, through email or digitally or through any other such media immediately but in any case not later than 3 working days from the date of receipt of reporting of vacancies.
2. An employer, if advertises that vacancy in any media or makes recruitment through any agency or any other mode, may invariably quote that unique vacancy reporting number in that advertisement or recruitment process.
3. Any change in the particulars already furnished to the Career Centre, shall be reported in writing or through valid official email or digitally (including through a portal) as the case may be, to the appropriate Career Centre.

FORM-XXVII
[See Rule 29(6)]

Form EIR (Employment Information Return)
Yearly Return to be submitted to the Career Centre (Regional) for the Year ended.....

The following information is required to be submitted under the Code on Social Security (Chapter XIII – Employment Information & Monitoring) 2020.

Name & Address of the Employer		
Whether – Head Office		
Branch Office Type of Establishment (Public /Private Sector)		
Nature of business/Principal activity		
Establishment Registration No. under the Code		
1. (a) EMPLOYMENT Total number of manpower of establishment including working proprietors/partners//contingent paid and contractual workers, out-sourced workers excluding part-time workers and apprentices. (The figures should include every person whose wage or salary is paid).		
Category	On the last working day of the previous Year	On the last working day of the Year under report
MEN		
WOMEN		
Other (Transgender)		
TOTAL :		
PWD (persons with disabilities) out of above total		

(EIR-continued)

2. Number of vacancies* occurred and reported to Career Centre during the year and the number of vacancies filled during the year				
Occurred	Reported		Filled	Source (Career Centre/ NCS Portal/ Govt. Recruiting Agencies/ Private Placement Organisations/ others)
	Career Centre (Regional)	Career Centre (Central)		
1	2	3	4	5

(Please list any other occupations also for which this establishment had any difficulty in obtaining suitable applicants recently.)

4. Estimated Manpower Requirement by Occupational Classification during the next calendar year (Please give below the number of employees in each occupation separately).

Occupation	Number of employees				
	Please give as far as possible approximate number of vacancies in each occupation you are likely to fill during the next financial year due to retirement/ expansion or re-organisation.				
Description	Men	Women	Others (transgender)	Total	PWD (persons with disabilities) out of total
1	2	3	4	5	6
Total					

* In the column (description) -Use exact terms such as Engineer (Mechanical), Assistant Director (Metallurgist); Research Officer (Economist); Supervisor (Tailoring), Inspector (Sanitary), Superintendent (Office), Manager (Sales), Manager (Accounts), Executive (Marketing), Data Entry Operator.....so on.

Signature, Name & Designation of Authorised Signatory
of establishment/ employer with seal & date

To

The Career Centre,
.....

Note:- 1. This return is to be rendered to the Career Centre (Regional) within 30 days after the end of the financial year concerned by establishments/employers vide their obligation under the Code on Social Security, 2020 (Chapter XIII-Employment Information and Monitoring).

2. The main purpose in obtaining the information from employers is to know (i) the vacancies/employment opportunities available; (ii) type of personnel who are in short supply; and (iii) future job opportunities for providing vocational guidance to the jobseekers and connecting them with the employers. This is helpful in ascertaining the skill needs also. Employers too will be able to call on the Career Centres for getting suitable candidates as per their requirements.

संचिका संख्या-1 / COSS 10-01/2021, श्र०सं०-

पटना, दिनांक-
बिहार राज्यपाल के आदेश से

(राजीव रंजन)
सरकार के संयुक्त सचिव

संचिका संख्या-1 / COSS 10-01/2021, श्र०सं०-

पटना, दिनांक-

प्रतिलिपि:-प्रभारी पदाधिकारी, ई-गजट मुद्रण कोषांग, वित्त विभाग, बिहार, पटना को सूचनार्थ एवं आवश्यक कार्यार्थ प्रेषित। 200 (दो सौ) अतिरिक्त प्रतियाँ विभाग को उपलब्ध कराने की कृपा की जाय।

(राजीव रंजन)
सरकार के संयुक्त सचिव

संचिका संख्या-1 / COSS 10-01/2021, श्र०सं०-

पटना, दिनांक-

प्रतिलिपि:- मुख्य सचिव, बिहार, पटना/मुख्यमंत्री के प्रधान सचिव, बिहार, पटना/संयुक्त सचिव, श्रम एवं रोजगार मंत्रालय, भारत सरकार/महानिदेशक, लेबर ब्यूरो, श्रम और रोजगार मंत्रालय, चंडीगढ़ का कार्यालय/महानिदेशक, वी०वी० राष्ट्रीय श्रम संसाधन, नोएडा/अवर सचिव, श्रम संसाधन विभाग, बिहार, पटना/स्थानिक आयुक्त, बिहार भवन, नई दिल्ली/सभी अपर मुख्य सचिव/सभी प्रधान सचिव/सभी सचिव/सभी प्रमंडलीय आयुक्त/सभी जिला पदाधिकारी/सभी विभागाध्यक्ष/ सचिव, विधि विभाग, बिहार, पटना /प्रधान सचिव, मंत्रिमंडल सचिवालय विभाग/ सचिव, बिहार चैम्बर ऑफ कॉमर्स, बिहार, पटना को सूचनार्थ एवं आवश्यक कार्यार्थ प्रेषित।

(राजीव रंजन)

सरकार के संयुक्त सचिव

संचिका संख्या-1 / COSS 10-01/2021, श्र०सं०-

पटना, दिनांक-

प्रतिलिपि:- मुख्य कारखाना निरीक्षक, बिहार, पटना/मुख्य वाष्पित्र निरीक्षक, बिहार, पटना/मुख्य कारखाना निरीक्षक, बिहार, पटना/निदेशक, कृषि श्रमिक, बिहार, पटना/सभी उप श्रमायुक्त/सभी सहायक श्रमायुक्त/सभी श्रम अधीक्षक/सभी कारखाना निरीक्षक को सूचनार्थ एवं आवश्यक कार्यार्थ प्रेषित।

(राजीव रंजन)

सरकार के संयुक्त सचिव

